

No. 36034/3/2013-Estt.(Res.)

Government of India

Ministry of Personnel, Public Grievances and Pensions

Department of Personnel and Training

North Block, New Delhi

Dated the 25th February, 2014

OFFICE MEMORANDUM

Subject: Issue of Compendium of instructions on reservation for ex-servicemen.

This Department has been in the process of issuance of a compendium on instruction on reservation, concessions and relaxations for Ex-servicemen in Central Government Services. In this regard, the Department of Ex-servicemen Welfare may refer to their O.M. No. 28(66)/2013/D (Res.I) dated 17.07.2013 and 18.09.2013. The compendium has now been finalized covering various notifications and Office Memoranda issued on reservation, concessions and relaxations for Ex-servicemen in Central Government Services. A copy of Compendium is enclosed.

Enclo.: As above.



(G. Srinivasan)

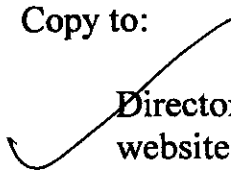
Deputy Secretary to the Government of India

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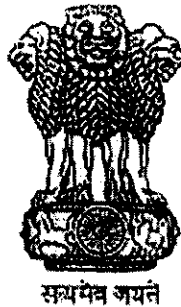
To,

1. Shri A.K Das, Deputy Secretary (Res-I), Department of Ex-servicemen Welfare, South Block, New Delhi.
2. Director General, Director General Resettlement, West Block-IV, R.K. Puram, New Delhi-110066, with the request to give wide publicity of the compendium.

Copy to:

 Director (NIC), DOPT, with the request to upload the compendium on the website of the Department with hyperlinking of Annexures to the compendium.

COMPENDIUM
ON
RESERVATION, CONCESSIONS AND RELAXATIONS
FOR EX-SERVICEMEN
IN
CENTRAL GOVERNMENT SERVICES



GOVERNMENT OF INDIA
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES AND
PENSIONS
DEPARTMENT OF PERSONNEL AND TRAINING

वे. नारायणसामी

● VARAYANASAMY



सत्यमेव जयते

राज्यमंत्री
प्रधानमंत्री कार्यालय,
कार्मिक, लोक शिकायत तथा पेंशन मंत्रालय
भारत सरकार

Minister of State
Prime Minister's Office,
Personnel, Public Grievances & Pensions
Government of India

FOREWARD

It has always been the endeavour of Government to care for the ex-servicemen. Various relaxations have been provided in terms of reservation of vacancies, relaxation of age, relaxation regarding educational qualification, relaxation in standard, priority in appointment, etc. in respect of certain percentage of vacancies in Central Government services being filled up by them. In exercise of the powers conferred by the proviso to Article 309 of the Constitution, the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979 had been notified on 15th December, 1979 to regulate the recruitment of ex-servicemen as a measure of their rehabilitation which was also amended from time to time. Various Office Memoranda have also been issued to elucidate the matters of various relaxations in favour of the ex-servicemen.

2. It gives me immense pleasure to note that this compendium will help the stakeholders and ex-servicemen to know about the aspects of reservation and concessions being given to ex-servicemen in appointment in the Central Government.

(V. Narayanasamy)



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DISCLAIMER

- (i) Though all possible care has been taken to ensure accuracy and consistency, in the event of a conflict between the compendium and Government orders/instructions on the subject, the latter will prevail.
- (ii) Any information given herein cannot be cited in any dispute or litigation, nor is it a substitute for a legal interpretation/ evidence. The user will be solely responsible for any consequence of the decision taken on the basis of information contained in this compendium.
- (iii) Consequent on implementation of the recommendations of 6th CPC, most of the Group 'D' posts/cadre have been replaced by Mutli-Tasking Staff (MTS) and is now included in Group 'C' cadre. Since all rules have not yet been modified to that effect, Group 'D', wherever, may be read in that context.
- (iv) Various Orders/Office Memoranda quoted at the end of paragraphs and Chapters may be accessed by logging on to www.persmin.nic.in -> Department of Personnel & Training->OMs & Orders.

2. Definition of Ex-servicemen

The Ex-servicemen (Re-employment in Central Services and Posts) Rules, 1979, as amended from time to time, defines an ex-servicemen as a person -

- (i) who has served in any rank whether as combatant or non-combatant in a Regular Army, Navy and Air Force of the Indian Union, and
 - (a) who either has been retired or relieved or discharged from such service whether at his own request or being relieved by the employer after earning his or her pension; or
 - (b) who has been relieved from such service on medical grounds attributable to military service or circumstances beyond his control and awarded medical or other disability pension; or
 - (c) who has been released from such service as a result of reduction in establishment;
- (ii) who has been released from such service after completing the specific period of engagement, otherwise than at his own request, or by way of dismissal, or discharge on account of misconduct or inefficiency and has been given a gratuity; and includes personnel of the Territorial Army, namely, pension holders for continuous embodied service or broken spells of qualifying service;
or
- (iii) personnel of Army Postal Service who are part of Regular Army and retired from the Army Postal Service without reversion to their parent service with pension, or are released from the Army Postal service on medical grounds attributable to or aggravated by military service or circumstances beyond their control and awarded medical or other disability pension;
or
- (iv) Personnel, who were on deputation in Army Postal Service for more than six months prior to 14th April, 1987;
or
- (v) Gallantry award winners of the Armed Forces including personnel of Territorial Army;
or
- (vi) Ex-recruits boarded out or relieved on medical ground and granted medical disability pension.

REFERENCE

Notification No.:

- (vii) 39016/10/79-Estt(C) dated 15th Dec., 1979 (Annexure-P.13-16)
- (ii) 36034/5/85-Estt(SCT) dated 27th Oct., 1986 (Annexure-P.17-19)
- (iii) 36034/5/85-Estt(SCT) dated 27th March, 1987 (Annexure-P.20-21)
- (iv) 36034/1/2006-Estt (Res) dated 4th October, 2012 (Annexure-P.22-25)

Office Memorandum No.:

- (i) 36034/5/85-Estt (SCT) dated 14th April, 1987 (Annexure-P.26-28)
- (ii) 1(9)/2010/D(Res-I) dated 20/21 July, 2011, 18th March, 2013 and 10th April, 2013 (issued by Department of Ex-servicemen Welfare) (Annexure-P.29-32)
- (iii) 12(1)2005/D (Res-I) dated the 1st February, 2006 (issued by Department of Ex-Servicemen Welfare) (Annexure-P.33)

3. Application of Ex-servicemen Rules

These rules shall apply to all the Central Civil Services and posts of Group C and Group D and the posts upto the level of Assistant Commandant in all para-military forces.

Para military forces mean the Border Security Force, Central Reserve Police Force, Indo-Tibetan Border Police, Central Industrial Security Force, Secretariat Security Force, Assam Rifles and Railway Protection Force.

REFERENCE

Notification No.:

- (i) 39016/10/79-Estt(C) dated 15th Dec., 1979 (Annexure-P.15-18)
- (ii) 36034/1/2006-Estt (Res) dated 4th October, 2012 (Annexure-P.24-27)

4. Reservation of vacancies

- (i) Ten per cent of the vacancies in the posts upto of the level of the Assistant Commandant in all para-military forces;
 - (ii) Ten per cent of the vacancies in Group C posts; and
 - (iii) Twenty per cent of the vacancies in Group D posts,
- including permanent vacancies filled initially on a temporary basis and temporary vacancies which are likely to be made permanent or are likely to continue for three months and more, to be filled by direct recruitment in any year shall be reserved for being filled by ex-servicemen.

The Scheduled Castes, the Scheduled Tribes and the Other Backward Class candidates selected against the vacancies reserved for ex-servicemen shall be adjusted against vacancies reserved for Scheduled Castes, Scheduled Tribes and Other Backward Classes, respectively:

provided that if a Scheduled Caste or the Scheduled Tribe or the Other Backward Class ex-serviceman is selected against the vacancy reserved for ex-servicemen and vacancy reserved for the Scheduled Caste or the Scheduled Tribe or the Other Backward Class, as the case may be, is not available to adjust such ex-servicemen, he shall be adjusted in future against the next available vacancy reserved for the Scheduled Caste or the Scheduled Tribe or the Other Backward Class, as the case may be.

If there is an increase in the reservation for ex-servicemen the additional vacancies that become available are to be utilised first for the appointment of disabled ex-servicemen and if all such vacancies are not utilised, they shall then be made available to the other ex-servicemen.

No vacancy reserved for ex-servicemen in a post to be filled otherwise than on the results of an open competitive examination shall be filled by the appointing authority by any general candidate until and unless the said authority:

- (viii) Has obtained a "Non availability Certificate" from the employment exchange (where a requisition is placed on an employment exchange);
- (ii) has verified the non-availability of a suitable candidate by reference to the Director General Resettlement and recorded a certificate to that effect; and
- (iii) has obtained approval of the Central Government.

In case of recruitment to the vacancy reserved for Ex-servicemen in the Central Para Military Forces, the reserved vacancy remained unfilled due to non-availability of eligible or qualified candidates, the same shall be filled by candidates from non ex-servicemen category.

REFERENCE

Notification No.:

- (ix) 39016/10/79-Estt(C) dated 15th Dec., 1979 (Annexure-P.13-16)
- (ii) 36034/1/2006-Estt (Res) dated 4th October, 2012 (Annexure-P.22-25)

Office Memorandum/Letter No.:

- (i) 36012/58/92-Estt (SCT) dated 1st December, 1994 (Annexure-P.34)

In case a number of posts reserved for ex-servicemen are not filled by candidates who are ex-servicemen, the number of posts not so filled can be added to the number of posts falling to the share of ex-servicemen in the next year. This of course is without disturbing the general policy of reservation for other categories for whom reservation is available and subject to the condition that upper ceiling of 50% for total reservation is adhered to.

REFERENCE

Office Memorandum No.:

- (i) 36034/10/85-Estt (SCT) dated 12.3.87 (Annexure-P.35)
- (ii) 36034/10/85-Estt (SCT) dated 20th March, 1987 (Annexure-P.36-37)

5. Relaxation regarding age limit

For appointment to vacancies in Group B (Non-Gazetted), Group C or Group D posts in Central Government, an ex-servicemen shall be allowed to deduct the period of actual military service from his actual age and if the resultant age does not exceed the maximum age limit prescribed for the post for which he is seeking appointment by more than three years, he shall be deemed to satisfy the condition regarding age limit.

For appointment to any vacancy in Group A and Group B services or posts filled by direct recruitment otherwise than on the results of an Open All India Competitive Examination, the upper age limit shall be relaxed by the length of military service increased by three years in the case of ex-servicemen and commissioned officers including Emergency Commissioned Officers of Short Service Commissioned Officers.

For appointment to any vacancy in Group A and Group B services or posts filled by direct recruitment on the results of an All India Competitive Examination, the ex-serviceman and Commissioned Officers including Emergency Commissioned Officers or Short Service Commissioned Officers who have rendered at least five years military services and have been released –

- i. On completion of assignment (including those whose assignment is due to be completed within one year) otherwise than by way of dismissal or discharge on account of misconduct or inefficiency; or
- ii. On account of physical disability attributable to military service or on invalidment shall be allowed maximum relaxation of five years in the upper age limit.

The expression 'direct recruitment on the results of an All India Competitive Examination' means (i) all recruitment by UPSC whether through written examination or by interview or both; and (ii) recruitment made by other authorities including Staff Selection Commission or any other appointment authority through written competitive examination or test (but not by interview only). The expression 'direct recruitment otherwise than by open competition' means (i) any recruitment not made by the UPSC or (ii) recruitment not made through written competitive tests held by any other authority.

REFERENCE

Notification No.:

(i) 39016/10/79-Estt(C) dated 15.12.79 (Annexure-P.13-16)

(ii) 36034/1/2006-Estt (Res) dated 4.10.2012 (Annexure-P.22-25)

Office Memorandum No.:

(i) 36034/2/2013-Estt (Res) dated 8.4.2013 (Annexure-P.38-39)

Those ex-servicemen who have already secured regular employment under the Central Government in civil post would be permitted the benefit of age relaxation as admissible for ex-servicemen for securing another employment in any higher post or service under the Central Government irrespective of any Group/post. However, such candidates will not be eligible for the benefit of reservation, if any, for ex-servicemen in Central Government.

REFERENCE

Office Memorandum No.:

- (i) 36034/27/84-Estt(SCT) dated 2.5.85 (Annexure-P.40)
- (ii) 36034/6/90-Estt(SCT) dated 2.4.92 (Annexure-P.41)
- (iii) 36034/6/90-Estt (SCT) dated 10.10.94 (Annexure-P.42)

A candidate working in Armed Forces would become eligible for applying civil posts only when he completes the prescribed period of Army Service within a year from the last date for receiving application in connection with Special Recruitment/ Examination, etc. prescribed by the competent authority. The pro-forma of the certificate to be submitted along with the application form is given O.M. No.36034/2/91-Estt (Res) dated 3rd April, 1991. Since the appointment of such a candidate is subject to his submitting documentary evidence that he has been duly released/retired/discharged from the Armed Forces and qualified as an Ex-Servicemen, such a candidate shall be required to submit along with his application an undertaking duly signed by him in the format as mentioned in O.M. 36034/2/91-Estt(Res) dated 3rd April, 1991.

REFERENCE

Office Memorandum No.

- (i) 36034/2/91-Estt(SCT) dated 3rd April, 1991 (Annexure-P.43-44).

6. Relaxation regarding educational qualification

i. For appointment to any reserved vacancy in erstwhile Group 'D' posts, every ex-serviceman who has put in not less than three years service in the Armed Forces of the Union shall be exempt from the minimum educational qualification, if any, prescribed in respect of such posts;

ii. For appointment to any reserved vacancy in Group C posts, the appointing authority may at its discretion relax the minimum educational qualification where such qualification prescribed is a pass in the middle school examination or any lower examination in favour of ex-servicemen who have put in at least three years service in the Armed Forces of the Union and who are otherwise considered fit and suitable for appointment to such posts in view of their experience and other qualifications;

iii. For appointment to any reserved vacancy in Group C posts to be filled partly by direct recruitment and partly by promotion or transfer, where the minimum educational or technical qualification prescribed for appointment by direct recruitment is higher than that prescribed for promotees or transferees, an ex-serviceman shall be deemed to satisfy the prescribed educational or technical qualification, if he:

- (a) satisfies educational or technical qualification prescribed for direct recruitment to the post from which promotion or transfer to the post in question is allowed; and
- (b) his identical experience of work in a similar discipline and for the same number of years in the Armed Forces of the Union as prescribed for promotees or transferees.

iv. For appointment to any reserved vacancy in Group C posts, a matriculate Ex-serviceman (which includes an ex-serviceman who has obtained the Indian Army Special Certificate of Education or the corresponding certificates in the Navy or the Air Force), who has put in not less than 15 years of service in the Armed Forces of the Union may be considered eligible for appointment to the posts for which the essential educational qualification prescribed is graduation and where –

- (a) Work experience of technical or professional nature is not essential; or
- (b) Though non-technical professional work experience is prescribed as essential yet the appointing authority is satisfied that the ex-servicemen is expected to perform the duties of the post by undergoing on the job training for a short duration

v. For appointment to any reserved vacancy in Group C and Group D posts, where the prescribed minimum educational qualification is matriculation, the appointing authority may at his discretion relax the minimum educational qualifications in favour of an ex-serviceman who has passed the Indian Army Class-I

Examination or equivalent examination in the Navy or the Air Force and who has put in at least 15 years service in the Armed Forces of the Union and is otherwise considered fit to hold the post, in view of his experience and other qualifications.

REFERENCE

Notification No.:

- (i) 39016/10/79-Estt(C) dated 15.12.79 (Annexure-P.13-16)
- (ii) 15012/8/82-Estt (D) dated 12.2.1986 (Annexure-P.45-47)

Definition:

'Armed Forces of the Union' means the naval, military and air forces of the Union.

REFERENCE

Notification No.:

- (i) 39016/10/79-Estt(C) dated 15.12.79 (Annexure-P.13-16)

7. Intimation of vacancies

Vacancies existing in Group C and Group D posts in various offices under each Ministry/Department should be pooled at a central level (either zonal or divisional or circle) for determining the vacancies which can be earmarked for the ex-servicemen. Out of the vacancies so pooled the share of each category of beneficiaries including the respective carried forward reservation should be identified.

The reserved vacancies for ex-servicemen should be notified to the Directorate General (Resettlement) and the Rajya and Zila Sainik Boards. An advance notice preferably of 3 months is to be given to these organisations. The vacancies are also to be advertised through the local newspaper which will enable the ex-servicemen to apply direct to the recruitment agency.

All the Ministries / Departments have to ensure that the reservation policy of the Government as spelt out in the instructions issued by this Department from time to time is implemented fully by them and the organisations under their control.

REFERENCE

Office Memorandum No.:

- (i) 36034/11/85-Estt(SCT) dated 12.9.86 (Annexure-P.48-55)
- (ii) 36034/03/97-Estt.(Res) dated 26.3.98(Annexure-P.56)

8. Priority in Appointment

It would be appreciated that early rehabilitation of disabled personnel/dependants of those killed in action in civil employment is a national responsibility. The employing Departments are, therefore, to comply strictly with the regulations laid in O.M. No.14/1/74-Estt (D) dated 14.7.75 and 14024/1/88-Estt (D) dated 5.1.89.

The list of categories to whom priorities have been allowed was circulated vide O.M. No.14034/3/84-Estt(D) dated 31.7.1984. Under Priority I, recruits/officer cadets who are boarded out on medical ground attributable to their military training have been included at Sl.No.6 vide O.M. No.14024/3/95-Estt(D) dated 4th June, 1997.

Priority for the purpose of appointment to Group C and Group D posts under the Central Government filled by direct recruitment has been provided for ex-servicemen disabled either during the war or in peace time but their disability being attributable to military service. Such persons will be accorded priority along with retrenched employees of the Government.

Demobilised personnel of Armed Forces, Defence Personnel who are transferred to the Reserve List and members of Defence Forces who on retrenchment or retirement join the territorial army and members (upto 2) of each of the family of service personnel killed in action are given priority in filling up direct recruitment vacancies through Employment Exchange /DGE&T (Special Cell) along with certain other categories of persons.

All C and D posts when reported to Surplus Cell are to be simultaneously notified to Ex-servicemen Cell of the DGE&T to enable the cell to nominate disabled ex-servicemen/dependents of those killed against priority vacancies which cannot be filled by nominations of the Surplus Cell. In case of the Ministry of Defence and its subordinate offices, simultaneous notification of vacancies is to be made to the DGR and not the ex-servicemen cell of DGE&T.

Similarly, while sending requisitions to the Employment Exchange, the employing Departments are to clearly state whether the vacancies are priority or non-priority.

REFERENCE

Office Memorandum No.:-

- (i) 14/1/74-Estt (D) dated 14.7.75 (Annexure-P.57-62)
- (ii) 39016/5/81-Estt (C) dated 21.2.81 (Annexure-P.63-69)
- (iii) 14034/3/84-Estt(D) dated 31.7.84 (Annexure-P.70-75)
- (iv) 14024/1/88-Estt(D) dated 5.1.89 (Annexure-P.76-78)

Definition:

'Disabled ex-servicemen' means an ex-serviceman who while serving in the Armed Forces of the Union was disabled in operations against the enemy or in disturbed areas.

REFERENCE

Notification No.:

- (i)39016/10/79-Estt(Res) dated 15.12.79 (Annexure-P.13-16)
- (ii)14024/3/95-Estt(D) dated 4th June, 1997 (Annexure-P.79)

9. Relaxation of standard

In the case of direct recruitment, if sufficient number of candidates belonging to the ex-servicemen are not available on the basis of general standard to fill all the vacancies reserved for them, candidates belonging to the category of ex-servicemen may be selected under a relaxed standard of selection to make up the deficiency in the reserved quota subject to the condition that such relaxation will not affect the level of performance by such candidates.

REFERENCE

Office Memorandum No.:-

- (i) 15012/8/82-Estt (D) dated 12.2.86 (Annexure-P.45-47)

10. Liaison Officers for reservation matters relating to ex-servicemen

The Liaison Officers appointed to look after the reservation matters of SC/ST would also be the Liaison Officers for reservation matters relating to ex-servicemen also.

Information about the utilisation of reserved vacancies for ex-servicemen is to be sent by the Liaison Officers of all Ministries/Departments to the D.G. (Resettlement). These returns are half yearly.

REFERENCE

Office Memorandum No.:-

- (i) 36035/8/92-Estt (SCT) dated 10.11.94(Annexure-P.80)
(ii) 36034/6/82-Estt (SCT) dated 22.6.82 (Annexure-P.81-84)

11. Fee Concession

The ex-servicemen are exempted from payment of any examination or application fees.

REFERENCE

Office Memorandum No.:-

- (i) 39018/1/79-Estt (SCT) dated 20.9.79 (Annexure-P.85-86)

12. Periodic Returns

Information about the utilisation of reserved vacancies for ex-servicemen is to be sent by the Liaison Officers of all Ministries/Departments to the D.G. (Resettlement). These returns are half yearly.

REFERENE

Office Memorandum No.:-

- 36034/6/82-Estt(SCT) dated 22.6.82 (Annexure-P.87-88)

No. 39016/10/79-Estt.(C)
Government of India/Bharat Sarkar
Department of Personnel and Administrative
Reforms
(Karmik Aur Prashasanik Sudhar Vibhag)

New Delhi-1, the 15th December, 1979

NOTIFICATION

In exercise of the powers conferred by the provision to article 309 of the Constitution, the President hereby makes the following rules for regulating the recruitment of ex-servicemen in Central Civil Services and Posts, namely :

1. Short title and commencement :

- (1) These rules may be called the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979.
- (2) They shall be deemed to have come into force on the first day of July, 1979.

2. Definitions - In these rules, unless the context otherwise requires -

- (a) "Armed Forces of the Union" means the naval, military and air forces of the Unions;
- (b) "disabled ex-serviceman" means an ex-serviceman who while serving in the Armed Forces of the union was disabled in operations

against the enemy or in disturbed areas .

- (c) "ex-serviceman" means a person, who has served in any rank (whether as a combatant or as non combatant), in the Armed Forces of the Union, including the Armed Forces of the former Indian States, but excluding the Assam Rifles, Defence Security Corps, General Reserve Engineering Force, Lok Sahayak Sena and Territorial Army, for a continuous period of not less than six months after attestation, and

- (i) has been released, otherwise than at his own request or by way of dismissal or discharge on account of misconduct or inefficiency, or has been transferred to the reserve pending such release, or

- (ii) has to serve for not more than six months for completing the period of service requisite for becoming entitled to be released or transferred to the reserve as aforesaid; or

- (iii) has been released at his own request, after completing five years service in the Armed Forces of the Union;

- (d) "Para-military Forces" means the Border Security Force, Central Reserve Police Force, Indo-Tibetan Border Police, Central Industrial Security Force, Secretariat Security Forces, Assam Rifles, and Railway Protection Force;

- (e) "reserved vacancies" means vacancies

reserved under rule 4 for being filled by ex-servicemen

3. Application These rules shall apply to all the Central Civil Services and Posts, Group 'C' and Group 'D' and the posts of the level of Assistant Commandant in all para-military forces.

4. Reservation of vacancies - (1) Ten per cent of the vacancies in the posts of the level of Assistant Commandant in all para-military forces, ten per cent of the vacancies in each of the categories of Group 'C' and of such posts in each Group 'C' services; and twenty per cent of the vacancies in each of the categories of Group 'D' posts and of such posts in each Group 'D' service, including permanent vacancies filled initially on a temporary basis and temporary vacancies which are likely to be made permanent or are likely to continue for three months and more, to be filled by direct recruitment in any year shall be reserved for being filled by ex-servicemen;

Provided the percentage of reservation so specified for ex-servicemen in a category of posts shall be increased or decreased in any one recruitment year to the extent to which the total number of vacancies reserved for ex-servicemen, Scheduled Castes and scheduled Tribes (including the carried forward reservations for Scheduled Castes and Scheduled Tribes) and for any other categories taken together, falls short or is in excess, as the case may be, of fifty per cent of the vacancies in that category of posts filled in that year :

Provided further that in case of an increase in the reservation for the ex-servicemen under the preceding

proviso, the additional vacancies so made available for them shall be utilised first for the appointment of disabled ex-servicemen and if any such vacancies still remain unfilled thereafter the same shall then be made available to other ex-servicemen.

(2) Out of the vacancies reserved for being filled by ex-servicemen, vacancies shall be reserved for candidates belonging to the Scheduled Castes and Scheduled Tribes in accordance with such orders as are issued in this behalf by the Central Government from time to time :

Provided that if any ex-serviceman belonging to the Scheduled Caste or Scheduled Tribe is selected, his selection shall be counted against the overall quota of reservations that shall be provided for the Scheduled Castes or Scheduled Tribes in accordance with the orders issued by the Central Government from time to time.

(3) No vacancy reserved for ex-servicemen in a post to be filled otherwise than on the results of an open competitive examination shall be filled by the appointing authority by any general candidate, until and unless the said authority :

- (i) has obtained a "Non-availability Certificate" from the employment exchange (where a requisition is placed on an employment exchange) ;
- (ii) has verified the non-availability of a suitable candidate by reference to the Director General Resettlement and recorded a certificate to that effect ; and
- (iii) has obtained approval of the Central

Government.

5. SPECIAL PROVISION REGARDING AGE LIMIT - For appointment to any vacancy in Central Civil Services Group 'C' and Group 'D' whether reserved or not under these rules, every ex-servicemen who has put in not less than six months continuous service in the Armed Forces of the Union shall be allowed to deduct the period of such service from his actual age and if the resultant age does not exceed the maximum age limit prescribed for the post or service for which he seeks appointment by more than three years, he shall be deemed to satisfy the condition regarding age limit.

6. Special provision regarding educational qualifications

(1) For appointment to any reserved vacancy in Group 'D' posts, every ex-serviceman who has put in not less than three years service in the Armed Forces of the Union shall be exempt from the minimum educational qualification, if any, prescribed in respect of such posts.

(2) For appointment to any reserved vacancy in Group 'C' posts, the appointing authority may, at its discretion, relax the minimum educational qualification, where such qualification prescribed is a pass in the Middle School Examination or any lower examination, in favour of ex-servicemen who have put in atleast three years service in the Armed Forces of the Union and who are otherwise considered fit and suitable for appointment to such posts, in view of their experience and other qualifications.

(3) For appointment to any reserved vacancy in Group 'C' posts, to be filled partly by direct recruitment and partly by promotion or transfer where the minimum qualification or technical qualification prescribed for appointment by direct recruitment is higher than that prescribed for promotees or transferees, an ex-servicemen shall be deemed to satisfy the prescribed educational or technical qualification if he ;

(i) satisfies the educational or technical qualification prescribed for direct recruitment to the post from which promotion or transfer to the post in question is allowed, and

(ii) has identical experience of work in a similar discipline and for the same number of years in the Armed Forces of the Union, as prescribed for promotees or transferees.

EXPLANATION : For the purpose of this rule, in computing the period of three years service, there shall be added any period of service which an ex-serviceman has rendered while serving in a corresponding post or posts in a civil department or a public sector undertaking or an autonomous organisation, whether under the Central Government or any State Government, or in a nationalised Bank to the period of service rendered in the Armed Forces of the Union.

7. Amendment of recruitment rules- All rules regulating the recruitment of persons to Group 'C' and Group 'D' posts and services under the Central Government shall

be subject to the provisions of these rules and shall be constructed accordingly.

8. Interpretation- If any question arises as to the interpretation of these rules, the question shall be decided by the Central Government.

Explanatory memorandum to the Ex-servicemen (Re-employment in Central Civil Services and Post) Rules, 1979

Under the Ex-servicemen (Reservation of Vacancies in the Central Civil Services and Posts, Class III and Class IV) Rules, 1974, the reservations for ex-servicemen were available in the vacancies filled by direct recruitment in the Central Civil Service and Posts, Class III and Class IV. These rules ceased to be in force w.e.f. from the 1st July, 1979. Since the problem of rehabilitation of ex-servicemen is a continuing feature, it has been decided to make available to the ex-servicemen certain facilities for their rehabilitation in Civil employment on a permanent basis. In formulating the present rules the provisions of the Ex-servicemen (Reservation of Vacancies in the Central Civil Services and Posts Class III and Class IV) Rules, 1974, and the decisions taken on the recommendations of the Working Group of officers on Resettlement of Ex-servicemen with regard to changes in these rules including change in the nomenclature of the rules have been taken into account. This will not adversely affect the rights of any person.

No. 36034/5/85- Estt (SCT)
Government of India
Ministry of Personnel, P.G. and Pensions
(Department of Personnel and Training)

New Delhi, 27 October, 1986.

NOTIFICATION

GSR- In exercise of the powers conferred by the proviso to article 309 of the Constitution, the President hereby makes the following rules further to amend the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979 namely :

1. (1) These rules may be called the Ex-servicemen (Re-employment in Central Civil Services and Posts) Amendment Rules, 1986.

(2) they shall come into force on the date of their publication in the Official Gazette.
2. In rule 2 of the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979, for clause (c), the following clause shall be substituted, namely

(c) 'ex-servicemen' means a person, who has served in any rank (whether as a combatant or as a non-combatant) in the Regular Army, Navy and Air Force of the Indian Union but does not include a person who has served in the Defence Security Crops, the General Reserve

Engineering Force, the Lok Sahayak Sena and the para military forces ; and

- (i) who has retired from such service after earning his/her pension; or
- (ii) Who has been released from such service on medical grounds attributable to military service or circumstances beyond his control and awarded medical or other disability pension ; or
- (iii) who has been released, otherwise than on his own request, from such service as a result of reduction in establishment ; or
- (iv) who has been released from such service after completing the specific period of engagement, otherwise than at his own request or by way of dismissal or discharge on account of misconduct or inefficiency, and has been given a gratuity; and includes personnel of the Territorial Army of the following categories, namely :
 - (i) pension holders for continuous embodied service;
 - (ii) persons with disability attributable to military service; and
 - (iii) gallantry award winners.

Explanation : The persons serving in the Armed Forces of the Union, who on retirement from service, would come under the category of 'ex-servicemen' , may be permitted to

apply for re employment **one year** before the completion of the specified term of engagement and avail themselves of all concessions available to ex-servicemen but shall not be permitted to leave the uniform until they complete the specified term of engagement in the Armed Forces of the Union.

Note :

The principal rules were published vide notification No. GSR 1530, dated the 29th December, 1979 in the Gazette of India, Part II, Section 3, Sub-section (i) at pages 3004-3005.

(BATA K. DEY)

DIRECTOR (JCA)

No. 36034/5/85 - Estt. (SCT)
Government of India
Ministry of Personnel, Public Grievances
& Pensions
Deptt. of Personnel & Training

New Delhi, dated 27th March, 1987

NOTIFICATION

GSR- In exercise of the powers conferred by the proviso to article 309 of the Constitution, the President hereby makes the following rules further to amend the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979, namely :

1. (1) These rules may be called the Ex-servicemen (Re-employment in Central Civil Services and Posts) Amendment Rules, 1987.

(2) They shall be deemed to have come into force on the 15th day of November, 1986.
2. In rule 2 of the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979, to clause (c) , the following proviso shall be added, namely :

"Provided that for the period commencing on the 15th day of November, 1986 and ending with the 30th day of June, 1987, any person who has been released :

- (a) at his own request after completing 5 years service in the Armed Forces of the Union;
or

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- (b) after serving for a continuous period of six months after attestation, otherwise than at his own request or by way of dismissal or discharge on account of mis-conduct or inefficiency or has been transferred to the reserve pending such release ;

shall also deemed to be an ex-serviceman for the purposes of this clause."

Note : Principle rules were published vide notification No. GSR - 1530 dated the 29 th December, 1979 and subsequently amended vide notification No. GSR-973 dated 15th November, 1986 in the Gazette of India, Part II Section 3 -Sub-section (i).

[To be published in the Gazette of India, Extraordinary, Part II, Section 3, Sub section (i)]

Government of India
Ministry of Personnel, Public Grievances and Pensions

NOTIFICATION

New Delhi, dated the 4th October, 2012

G.S.R. - In exercise of the powers conferred by the proviso to article 309 of the Constitution, the President hereby makes the following rules further to amend the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979, namely:-

1. (1) These rules may be called the Ex-servicemen (Re-employment in Central Civil Services and Posts) Amendment Rules, 2012.
(2) They shall come into force from the date of their publication in the Official Gazette.

2. In the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979

(I) in rule 2. for clause (c), the following clause shall be substituted, namely:-

(c) An 'ex-serviceman' means a person -

(i) who has served in any rank whether as a combatant or non-combatant in the Regular Army, Navy and Air Force of the Indian Union, and

(a) who either has been retired or relieved or discharged from such service whether at his own request or being relieved by the employer after earning his or her pension; or

(b) who has been relieved from such service on medical grounds attributable to military service or circumstances beyond his control and awarded medical or other disability pension; or

(c) who has been released from such service as a result of reduction in establishment.

or
(ii) who has been released from such service after completing the specific period of engagement, otherwise than at his own request or by way of dismissal, or discharge on account of misconduct or inefficiency and has been given a gratuity and includes personnel of the Territorial Army, namely pension holders for continuous embodied service or broken spells of qualifying service

or
(iii) personnel of the Army Postal Service who are part of Regular Army and retired from the Army Postal Service without reversion to their parent service with pension, or are released from the Army Postal service on medical grounds attributable to or aggravated by military service or circumstance beyond their control and awarded medical or other disability pension;

or
(iv) Personnel, who were on deputation in Army Postal Service for more than six months prior to the 14th April, 1987;

or
(v) Gallantry award winners of the Armed forces including personnel of Territorial Army

or
(vi) Ex-recruits boarded out or relieved on medical ground and granted medical disability pension

(2) for rule 3, the following rule shall be substituted, namely:-

"3 Application - These rules shall apply to all the Central Civil Services and Posts and the posts upto the level of Assistant Commandant in all paramilitary forces."

(3) in rule 4,-

(a) for sub-rule(I), the following sub-rule shall be substituted, namely -

"(i) Reservation of vacancies: - Ten per cent of the vacancies in the posts upto of the level of the Assistant Commandant in all para-military forces, ten per cent of the vacancies in

Group 'C' posts; and twenty per cent of the vacancies in Group 'D' posts, including permanent vacancies filled initially on a temporary basis and temporary vacancies which are likely to be made permanent or are likely to continue for three months and more, to be filled by direct recruitment in any year shall be reserved for being filled by ex-servicemen."

(b) for sub-rule(2), the following sub-rule shall be substituted, namely:-

"(2) The Scheduled Castes, the Scheduled Tribes and the Other Backward Class candidates selected against the vacancies reserved for ex-servicemen shall be adjusted against vacancies reserved for Scheduled Castes, Scheduled Tribes and Other Backward Classes, respectively:

Provided that if a the Scheduled Caste or the Scheduled Tribe or the Other Backward Class ex-servicemen is selected against the vacancy reserved for ex-servicemen and vacancy reserved for the Scheduled Castes or the Scheduled Tribes or the Other Backward Classes, as the case may be, is not available to adjust such ex-serviceman, he shall be adjusted in future against the next available vacancy reserved for the Scheduled Castes or the Scheduled Tribes or the Other Backward Classes, as the case may be."

(c) after sub-rule (3), the following proviso shall be substituted, namely:-

"Provided that in case of recruitment to the vacancy reserved for Ex-servicemen in the Central Para Military Forces, the reserved vacancy remained unfilled due to non-availability of eligible or qualified candidates, the same shall be filled by candidates from non-ex-servicemen category".

(4) for rule 5, the following rule shall be substituted, namely:-

"(5) (a) For appointment to vacancies in Group B(Non-Gazetted), Group C or Group D posts in Central Government, an ex-serviceman shall be allowed to deduct the period of actual military service from his actual age and if the resultant age does not exceed the maximum age limit prescribed for the post for which he is seeking appointment by more than three years, he shall be deemed to satisfy the condition regarding age limit

(b) For appointment to any vacancy in Group A and Group B services or posts filled by direct recruitment otherwise than

on the results of an Open All India Competitive Examination, the upper age limit shall be relaxed by the length of military service increased by three years in the case of ex-servicemen and commissioned officers including Emergency Commissioned Officers or Short Service Commissioned Officers

- (c) For appointment to any vacancy in Group A and Group B services or posts filled by direct recruitment on the results of an All India Competitive Examination, the ex-servicemen and Commissioned Officers including Emergency commissioned Officers or Short Service Commissioned Officers who have rendered atleast five years military services and have been released -
- (i) on completion of assignment (including those whose assignment is due to be completed within one year) otherwise than by way of dismissal or discharge on account of misconduct or inefficiency; or
- (ii) on account of physical disability attributable to military service or on invalidment, shall be allowed maximum relaxation of five years in the upper age limit.

[File No.36034/1/2006-Estt(Res)]

Manoj Joshi

(Manoj Joshi)

Joint Secretary to the Government of India

Note:- The principal rules were published in the Gazette of India Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R. 1530, dated the 15th December, 1979 and subsequently amended by G.S.R. 973 dated 27th October, 1986, and was last amended by notification No. G.S.R. 333(E), dated 27th March, 1986.

No. 36034/5/85 - Estt (SCT)
Government of India
Ministry of Personnel, Public Grievances &
Pensions
(Department of Personnel & Training)

New Delhi, dated 14th April, 1987

OFFICE MEMORANDUM

SUBJECT : Recommendation No. 15.2 of the High Level Committee on the Problems of Ex-servicemen - Revision of the definition of 'ex-servicemen' in the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979

The undersigned is directed to say that the High Level Committee on the Problems of Ex-servicemen recommended the following definition of the term 'Ex-servicemen' :

"An' ex-serviceman" means a person who has served in any rank whether as a combatant or non-combatant in the Regular Army, Navy and Air Force of the Indian Union and

- (i) who retired from such service after earning his/her pension ; or
- (ii) who has been released from such service on medical grounds attributable to military service or circumstances beyond his control and awarded medical or other disability pension ;

or

- (iii) who has been released, otherwise than on his own request, from such service as a result of reduction in establishment ; or
- (iv) who has been released from such service after completing the specific period of engagements, otherwise than at his own request or by way of dismissal or discharge on account of misconduct or inefficiency, and has been given a gratuity; and includes personnel of the Territorial Army of the following categories, namely :
 - (i) Pension holders for continuous embodied service;
 - (ii) persons with disability attributable to military service; and
 - (iii) gallantry award winners."

2. After careful consideration the Government have accepted the above definition recommended by the High Level Committee. However, it may be observed that in the new suggested definition certain categories of personnel which have served in the Armed Force of the Union have been excluded for consideration as ex-servicemen, whereas certain additional categories of Territorial Army Personnel have been added in the revised definition. The Notification containing the revised definition, was issued on 27th October, 1986 and published in the official Gazette on 15th November, 1986 (copy enclosed). The Notification gives effect to the new definition from the date of its publication, but since some of the categories

were excluded without adequate publicity, the effect of the earlier notification of 27th October, 1986 has been, stayed by issuing another Notification dated 27.3.87 (copy enclosed) in which the date of effect has been indicated as 1.7.87. The net effect is that the following two categories of personnel, who were included in the pre-revised definition of 'ex-servicemen' will now cease to be treated as ex-servicemen w.e.f. 1.7.87 ; as will be seen from the following proviso, namely.

"Any person who has been released :

- (a) at his own request after completing 5 years service in the Armed Forces of the Union; or
- (b) after serving for a continuous period of six months after attestation, otherwise than at his own request or by way of dismissal or discharge on account of mis-conduct or inefficiency or has been transferred to the reserve pending such release ;

shall also deemed to be an ex-serviceman for the purposes of this clause."

3. The Territorial Army Personnel will, however, be treated as ex-servicemen w.e.f. 15.11.86

4. Ministry of Finance etc. are, therefore, requested to bring the contents of this Office Memorandum to notice of all the appointing authorities under their administrative control and ensure that there is no laxity on the part of the authorities implementing the above instructions

Sd/ **Bata K. Dey.**
Director (JCA)

1(9)/2010/D(Res-I)
Government of India
Ministry of Defence
(Deptt. of Ex-Servicemen Welfare)

New Delhi, the 20th July, 2011
21/8

OFFICE MEMORANDUM

Subject: Grant of Ex-servicemen status to Army Postal Service Personnel.

The undersigned is directed to refer to this Ministry's OM No. 523/1/2006/D (Res) dated 26.07.2006 on the above subject and to state that as per Order dated 26.03.2010 passed by Hon'ble AFT Chandigarh in connection with TA. No. 110 of 2009 (arising out of CWP No 15237/2009) filed by JC-105931 Ex-Sub Atma Singh & others Vs UOI & others, personnel who were on deputation in Army Postal Service for more than 6(Six) months prior to 14th April 1987 would also be considered as Ex-servicemen with all consequential benefits.

2. This is in supersession of the O.M. of even number dated 14.07.2011 issued in this regard. The said O.M. dated 14.07.2011 may be treated as cancelled/withdrawn.

3. This has the approval of the competent authority.

Smukhhej 21/07/2
(Supriyo Mukherjee)

Under Secretary to the Government of India

To

- o/c*
1. Director General Resettlement
 2. Secretary, Kendriya Sainik Board
 3. Addl. DG (Postal Services), Army HQrs, R.K.Puram, New Delhi.
 4. Zonal Directors of Resettlement (through KSB)

Copy also for information to:-

1. Adjutant General, Army HQrs.
2. A.O.A., Air HQrs.
3. C.O.P. Naval HQrs
4. All Rajya Sainik Board/Zila Sainik Board (through KSB)
5. DOP&T (Estt. SCT) Division, North Block, New Delhi.

No. 12(1)2005/D (Res-I)
Government of India
Ministry of Defence
Department of Ex-servicemen Welfare
D (Res-I)

New Delhi, the 18th March, 2013.

OFFICE MEMORANDUM

Subject: Grant of Ex-servicemen status to recruits boarded out on Medical grounds with disability pension.

The undersigned is directed to refer to Office Memorandum of even number dated 01.02.2006 wherein with the approval of Raksha Mantri it was decided that such recruits who were boarded out /released on medical grounds and granted medical/disability pension will also be covered under the category of 'Ex-servicemen' for all practical purposes. Reference is also invited to DOP&T Notification No. G.S.R.757 (E) dated 04.10.2012 (published in the Official Gazette on 10.10.2012) wherein ex-recruits boarded out or relieved on medical grounds and granted medical disability pension have been given the status of Ex-servicemen. It has been reported that some Rajya Sainik Boards are not issuing Ex-servicemen cards to such ex-recruits as a result of which ex-recruits are being denied the benefits available to ex-servicemen. Various representations from ex-recruits are being received and court cases have also been filed in this regard.

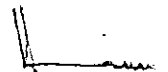
2. In this context, DOP&T has also stated that though the said notification is effective from the date of its publication in the Official Gazette i.e. 10.10.2012, the Ministry of Defence has already granted status of Ex-servicemen for all practical purposes to ex-recruits who are boarded out/released on medical grounds and granted medical/disability pension vide OM dated 01.02.2006. Accordingly DOP&T has advised that Ministry of Defence may consider the issue of granting of Ex-servicemen status to such ex-recruits who are boarded out/released on medical grounds and granted medical/disability pension w.e.f. 01.02.2006 prior to the Notification and issue instructions to the Zila Sainik Board to this effect.

3. The matter has been examined in the Department and, with the approval of the competent authority, it is reiterated that such recruits who were boarded out/released on medical grounds and granted medical/disability pension will be covered under the category of ex-servicemen for all practical purposes as per the OM dated 01.02.2006 w.e.f. 01.02.2006.

4. KSB/DGR may accordingly take necessary action to grant ESM status to such ex-recruits to avoid further hardships to the ex-recruits and decisions of all cases in this regard may be complied with immediately. This will enable eligible ex-recruits to avail various facilities available to them.

5. KSB may issue specific instruction to all RSBs/ZSBs to grant 'Ex-servicemen' status to such ex-recruits who were boarded out/released on medical grounds and granted medical/disability pension with effect from 01.02.2006. This OM may be uploaded on the official website of DGR/KSB for wide publicity. Compliance report may please be furnished.

This has the approval of the competent authority.



(Vineet Saini)

Deputy Secretary (Res-1)

To



1. DGR
2. Secretary, KSB.
3. PSA, NIC, MoD --- It is requested to upload the OM on the website of D/o ESW.

1(9)/2010/D (Res-I)
Government of India
Ministry of Defence
(Deptt. of Ex-Servicemen Welfare)

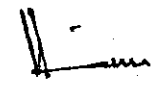
New Delhi, the 10th April, 2013

OFFICE MEMORANDUM

Subject: Grant of Ex-servicemen status to Army Postal Service Personnel.

The undersigned is directed to refer to this Ministry's OM of even No. dated 20/21.07.2011 on the above subject wherein it was stated that as per Order dated 26.03.2010 passed by Hon'ble AFT Chandigarh in connection with TA. No. 110 of 2009 (arising out of CWP No 15237/2009) filed by JC-105931 Ex-Sub Atma Singh & others Vs UOI & others, personnel who were on deputation in Army Postal Service for more than 6(Six) months prior to 14th April 1987 would also be considered as Ex-servicemen with all consequential benefits. It has been reported that Ex-serviceman status has not been given to such personnel as a result of which they are being denied the benefits available to Ex-servicemen. Some representations have been received in this regard from affected personnel also.

2. The matter has been examined in the department and with the approval of the competent authority, it is reiterated that that OM dated 20/21.07.2011 was issued based on the directions of the Hon'ble AFT very clearly stating that personnel who were on deputation in Army Postal Service for more than 6 (six) months prior to 14th April, 1987 would also be considered as Ex-servicemen with all consequential benefits. Hence a person who was on deputation in APS for more than 6 (Six) months prior to 14th April 1987 is to be considered as ESM.


(Vineet Saini)
Deputy Secretary (Res-I)

To

1. Director General Resettlement
2. Secretary, Kendriya Sainik Board
3. Addl. DG (Postal Services), Army HQrs, R.K.Puram, New Delhi.
4. Zonal Directors of Resettlement (though KSB)

Copy also for information to:-

1. Adjutant General, Army HQrs.
2. A.O.A., Air HQrs.
3. C.O.P. Naval HQrs
4. All Rajya Sainik Board/Zila Sainik Board (through KSB)
5. PSA, NIC, MoD ---- It is requested to upload the OM on the website of D/o ESW.

176 37/A

No.12/I/2005/D(Res)
Government of India
Ministry of Defence
(Deptt. of Ex-servicemen Welfare)

New Delhi, dated the 01st February, 2006

OFFICE MEMORANDUM

Subject:- Grant of Ex-servicemen status to recruits boarded out on Medical grounds with disability pension.

The undersigned is directed to say that requests are being received from various sources to issue a clarification as to whether the recruits who are boarded out during the course of the training on medical grounds and granted medical/disability pension should be given the status of an ex-serviceman.

2. The matter has been carefully examined while keeping in view the following facts:-

- (i) a recruit is an enrolled person under Section 11 of the Army Act,
- (ii) his training period is treated as physical service and counted for pensionary purposes,
- (iii) he can be deployed in aid to civil authorities during the course of his training,
- (iv) after completion of the training he gets the pay of a soldier with arrears for the entire training period; and
- (v) recruits getting injured and released/boarded out from service are granted medical/disability pension.

3. It has accordingly been decided with the approval of Raksha Mantri that such recruits who were boarded out/released on medical grounds and granted medical/disability pension will also be covered under the category of ex-serviceman for all practical purposes.

4. In view of the above, the Department of Personnel & Training may kindly add a suitable explanation to their O.M. No.36034/4/85-Estt.(SCT), dated the 14th April, 1987.

A.K. Upadhyay
(A.K. Upadhyay) 21/2/06
Joint Secretary to the Govt. of India
Tele: 23011804

To

Ministry of Personnel, Public Grievances & Pension (DOP&T),
North Block, New Delhi.

No. 36012/58/92-Estt.(SCT)
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel & Training

North Block, New Delhi
Dated 1st December, 1994

OFFICE MEMORANDUM

Subject: Reservation available for Ex-servicemen in Groups 'D', 'C' and specified categories of Group 'B' posts/services under the Central Government- Revised procedure for filling the vacancies

The Government had been considering the method of effecting the available reservation for Ex-servicemen in the light of the judgment of the Supreme Court in *Indira Sawhney* case.

2. The Court has held that reservation for SC/ST/OBCs made under Article 16(4) of the Constitution may be called vertical reservation and the reservation made under Article 16(1) of the Constitution like the reservation for physically handicapped persons as horizontal reservation. Horizontal reservations cut across vertical reservation (in what is called interlocking reservation) and the persons selected against these reservations has to be placed in the appropriate category, that is so say, if he belongs to Sc category, he will be placed in that quota by making necessary adjustment and similarly if he belongs to Open Competition (OC) category, he will be placed in that category by making necessary adjustment. Even after providing for these horizontal reservations, the percentage of reservation in favour of backward class of citizens should remain the same.
3. In the light of the above-said observation of the Supreme Court, it has been decided that the percentage of reservation for Ex-servicemen should remain the same as at present. An Ex-servicemen selected under the reservation provided for them should be placed in the appropriate category, viz., SC/ST/OBC/General category depending upon the category to which he belongs. For example, an Ex-serviceman who is a SC will be counted against the SC reservation point, an Ex-serviceman who is ST or OBC will be counted against ST/OBC reservation point and the Ex-serviceman who belongs to General category will be slotted in the General category vacancy point in the respective reservation roster.
4. All the Ministries/Departments are requested to bring the above instructions to the notice of all the Heads of the Departments and Appointing Authorities under their control for necessary compliance. Necessary amendment to the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979, is being issued separately.

F. No. 36034/10/85-Estt.(SCT)
Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel & Training

North Block, New Delhi

Dated: 12/3-20-1987

Office Memorandum

Subject:- Dereservation of reserved vacancy and 'non-availability certificate-Recommendation of the High Level Committee on the Problem of Ex-Servicemen.

The High Level Committee on the problems of ex-servicemen has in Para. 15.10(supportive Para. 5.50) of its report has inter alia made the following recommendations:-

- (i) the procedure for dereservation of reserved posts for ex-servicemen be done strictly in accordance with the existing rules;
- (ii) Directorate General Resettlement should be given 30 clear days for confirmation regarding 'non-availability' of ex-servicemen for specific posts; and
- (iii) the vacancies reserved for ex-servicemen be kept vacant and carried forward for at least one year before these are dereserved and filled up by others.

2. After careful consideration, the Government have accepted the recommendations of the High Level Committee on Problems of ex-servicemen at (i) and (ii) above.

3. In regard to Part (iii) of the recommendation No. 15.10 of the High Level Committee, it has been decided that there will be no objection of the number of posts reserved for ex-servicemen but not filled in any particular year is added to the number of posts falling to the share of ex-servicemen in the next year. This, of course is without disturbing the general policy of reservation for other categories for whom reservation is available and subject to the condition that the upper ceiling of 50% for total reservation as prescribed in terms of Supreme Court Judgment, is adhered to.

4. Ministry of Finance, etc., are, therefore, requested to bring the contents of this Office Memorandum of the notice of all the Appointing Authorities under the administrative control and ensure that there is no laxity on the part of authorities in implementing the above instructions.

No.36034/10/85 - Estt (SCT)
Government of India
Ministry of Personnel, Public Grievances
& Pensions
Department of Personnel & Training

New Delhi, dated 20th March, 1987

OFFICE MEMORANDUM

Subject : Recommendation No. 15.10 (supportive para 5.50) of the Report of the High Level Committee on the Problems of Ex-servicemen. Dereservation of reserved vacancy and non-availability certificate

In partial modification of this Department's Office Memorandum of even number dated 12.3.87, on the subject cited above, the undersigned is directed to say that para 3 of the above Office Memorandum may please be substituted by the following :

"In regard to part (iii) of the recommendation No. 15.10 of the High level Committee, it has been decided that there will be no objection if the number of posts, reserved for ex-servicemen, but not filled in any particular year is added to the number of posts falling to the share of ex-servicemen, in the next year. This, of course, is without disturbing the general policy of reservation for other categories for whom reservation is available and subject to the condition that the upper ceiling of 50% for total reservation as prescribed in terms of Supreme Court Judgement, is adhered to."

2 Hindi version will follow.

Special provisions for age limits

For appointment to vacancies in any Group C or Group D posts in Central Government, an ex-serviceman shall be allowed to deduct the period of actual military service from his actual age and if the resultant age does not exceed the maximum age limit prescribed for the post for which he is seeking appointment by more than three years he shall be deemed to satisfy the condition regarding age limit.

The upper age limit shall be relaxed by the length of military service increased by three years in the case of ex-servicemen and commissioned officers including ECOs/SSCOs for appointment to any vacancy in Group A and Group B services/posts filled by direct recruitment otherwise than on the results of an open All India Competitive Examination held by the UPSC.

For appointment to any vacancy in Group A and Group B services/posts filled by direct recruitment on the results of an All India Competitive Examination held by UPSC the ex-servicemen and Commissioned Officers including ECOs/SSCOs who have rendered at least 5 years military service and have been released, (1) on completion of assignment (including those whose assignment is due to be completed with in 1 year) otherwise than by way of dismissal or discharge on account of misconduct or inefficiency, or (2) on account of physical disability attributable to military service or on invalidment, shall be allowed maximum relaxation of five years in the upper age limit.

(O.M. No 39016/15/79 - Estt (C) dt. 7.9.81

(ii) 36034/3/86 - Estt (SCT) dt. 17.7.86 and

(iii) 36034/8/88 - Estt. (SCT) dt. 19.5.88)

No.36034/2/2013-Estt.(Res.)
Government of India
Ministry of Personnel, Public Grievances and Pensions
Department of Personnel and Training

North Block, New Delhi.
Dated 8th April, 2013

OFFICE MEMORANDUM

Subject: Recruitment on all India basis by open competition and otherwise than by open competition – Clarification regarding.

The undersigned is directed to say that the Ex-servicemen (Re-employment in Central Civil Services and Posts) Amendment Rules, 2012, inter-alia provides as follows:-

“ 5 (b) For appointment to any vacancy in Group A and Group B services or posts filled by direct recruitment otherwise than on the results of **an Open All India Competitive Examination**, the upper age limit shall be relaxed by the length of military service increased by three years in the case of ex-servicemen and commissioned officers including Emergency Commissioned Officers or Short Service Commissioned Officers.

(c) For appointment to any vacancy in Group A and Group B service or posts filled by direct recruitment **on the results of an All India Competitive Examination**, the ex-servicemen and Commissioned Officers who have rendered at least five years military services and have been released:-

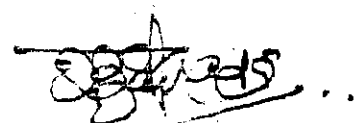
- (i) on completion of assignment (including those whose assignment is due to be completed within one year) otherwise than by way of dismissal or discharge on account of misconduct or inefficiency; or
- (ii) on account of physically disability attributable to military service or on invalidment, shall be allowed maximum relaxation of five years in the upper age limit.”

2. This Department has been receiving representations and RTI applications to

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clarify the meaning of the phrases "recruitment otherwise than on the results of an Open All India Competitive Examination" and "posts filled by direct recruitment on the results of an All India Competitive Examination" mentioned in the above paragraph.

3. It is hereby clarified that instructions on the subject already exist that the expression '**direct recruitment on the results of an All India Competitive Examination**' means (i) all recruitment by UPSC whether through written examination or by interview or both and; (ii) recruitment made by other authorities including Staff Selection Commission or any other appointment authority through written competitive examination or tests (but not by interview only). The expression '**direct recruitment otherwise than by open competition means**' (i) any recruitment not made by the UPSC or (ii) recruitment not made through written competitive tests held by any other authority.
4. All the Ministries/Departments are requested to bring it to the notice of all establishments under their control.



(Sharad Kumar Srivastava)

Under Secretary to the Govt. of India

Telefax : 2309 2110

1. All Ministries/Departments of the Govt. of India.
2. Railway Board.
3. Union Public Service Commission/Supreme Court of India/Election Commission/Lok Sabha Secretariat/Rajya Sabha Secretariat/Cabinet Secretariat/Central Vigilance Commission/President's Secretariat/Prime Minister's Office/Planning Commission.
4. Staff Selection Commission, CGO Complex, Lodi Road, New Delhi.
5. Office of the Comptroller & Auditor General of India, 10, Bahadur Shah Zafar Marg, New Delhi.
6. All Officers and Sections in the Ministry of Personnel, Public Grievances and Pensions and all attached/subordinate offices of this Ministry.
7. Information and Facilitation Centre, DoPT, North Block, New Delhi.
8. NIC-DoPT, North Block, New Delhi (with the request to upload the O.M. on the official website of this Ministry i.e. www.persmin.nic.in>>OMS and Orders>>Establishment (Reservation)>>Ex-servicemen).

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No. 36034/27/84-Estt. (EST)
Government of India/Bharat Sarkar
Ministry of Personnel & Training, Administrative
Reforms and Public Grievances and Pension/
(Department of Personnel & Training/Karmik
Aur Prashikshan Vibhag)

New Delhi, the April, 1985.

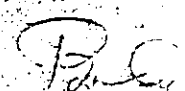
OFFICE MEMORANDUM 2-5-

Subject:- Reservation for ex-servicemen in Group 'C'
and 'D' posts/services - Clarification
regarding second time benefit -

The undersigned is directed to refer to this Department's marginally noted Office Memoranda and Notification regarding reservation for ex-servicemen in Group 'C' and Group 'D' posts/services, and to say that reference have been received in this Ministry seeking clarification on the point whether an ex-serviceman would continue to get the benefits as provided in the various orders and instructions issued from time to time even after having secured employment in the civil services after his release or discharge from the Armed Forces. In other words, whether an ex-serviceman can apply again for any vacancy reserved for ex-servicemen in the Central Government service and claim all the benefits admissible to ex-servicemen even if he is holding a civil post after his release/discharge, as the case may be.

2. The matter has been carefully considered and it has now been decided that once an ex-serviceman has joined the government job on civil side after availing of the benefits given to him as an ex-serviceman for his re-employment, his ex-serviceman status for the purpose of re-employment in Government ceases. On his joining the civil employment, he is deemed to be a civil employee and will accordingly be entitled to only such of the benefits like relaxation of age etc. as admissible to civil employees in the normal course in accordance with the existing instructions in this regard, subject to his fulfilment of the conditions governing the grant of such benefits.

3. Ministry of Finance etc., are requested to bring the contents of this Office Memorandum to the notice of all the attached and subordinate offices under their control.


(BATA K. DEO)
DIRECTOR (JCL)

No. 36034/6/90-Estt(SCT)
Government of India
Ministry of Personnel, P.G. and Pensions
(Deptt. of Pers. & Training)

New Delhi, the April 2, 1991

OFFICE MEMORANDUM

Subject: Benefit of age concession to ex-servicemen who have already joined Govt. service for applying for employment in a higher grade/cadre under the Central Govt. group C & D.

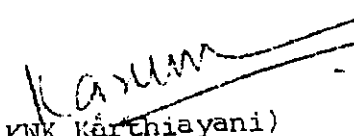
The undersigned is directed to refer to this Department's O.M.No.36034/27/84-Estt(SCT) dated 2.5.85 wherein it has been clarified that on an ex-servicemen joining civil appointment he is deemed to be a civil employee and will accordingly be entitled to only such of the benefits like relaxation of age etc. as admissible to civil employees, in accordance with the existing instructions in this regard. Representations have been received requesting the Govt. to reconsider the above decision. The matter has also been raised by the Staff Side of the National Council (JCM) suggesting that at least the benefit of age relaxation should be allowed to those ex-servicemen candidates who have joined a civil post under the Govt. of India and who wish to improve their career prospects.

2. The matter has been examined in this Department in consultation with Ministry of Defence and the Department of Public Enterprises and it has now been decided that such of these ex-servicemen candidates who have already secured employment under the Central Govt. in Groups C & D will be permitted the benefit of age relaxation as prescribed for ex-servicemen for securing another employment in a higher grade or cadre in Group C/D under the Central Govt. However, such candidates will not be eligible for the benefit of reservation for ex-servicemen in Central Govt. jobs.

The above decision is in modification of Provision of this Department's O.M.No.36034/27/84-Estt.(SCT) dated 2.5.85.

Ministry of Finance etc. are requested to bring the contents of this O.M. to the notice of all concerned.

Hindi version will follow.


(Mrs. K.K. Karthiayani)
Director (JCA)

To

All Ministries/Departments
Ministry of Defence - 20 copies
DG(R) - 20 copies
All staff side Members of the National Council

No. 36034/8/90-Estt.(SCT)
Government of India
Ministry of Personnel, P.G. and Pensions
Department of Personnel, & Training
(New Delhi)

Dated the 16 October, 1994.

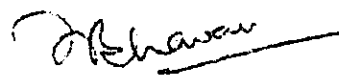
Subject: Benefit of age concession to ex-servicemen who have already joined Government service for applying for employment in a higher post/service under the Central Government.

The undersigned is directed to refer to this Department's O.M. of even No dated 2.4.92 wherein it was decided that such of those ex-servicemen candidates who have already secured employment under the Central Government in Group C and D, would be permitted the benefit of age-relaxation as prescribed for ex-servicemen for securing another employment in a higher grade or cadre in Group C and D under the Central Government.

2. The question of extending this concession to Group A and B posts has been under the consideration of the Government. It has now been decided that those ex-servicemen who have already secured regular employment under the Central Government in a civil post would be permitted the benefit of age relaxation as admissible for ex-servicemen for securing another appointment in any higher post or service under the Central Government. However, such candidates will not be eligible for the benefit of reservation, if any, for ex-servicemen in Central Government jobs.

3. The above decision is in modification of the provisions of this Department's O.M. No. 36034/27/84-Estt(SCT) dated 2.5.85.

4. Ministry of Finance etc. are requested to bring the contents of this O.M. to the notice of all concerned.


(BHAVANI THYAGARAJAN)
Director (JCA)

To

1. All Ministries/Departments of the Govt. of India.
2. Ministry of Defence-20 copies.
3. DG(R), Ministry of Defence, R.K. Puram, New Delhi-20 copies
4. UPSC, Dholpur House, New Delhi, w.r.t. their letter No. I/11/91-S-II dated 10.12.92 (with 20 copies)
5. Staff Selection Commission, New Delhi.

No. 36034/2/91-Estt.(SCT)
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel & Training

North Block, New Delhi
Dated 3rd April, 1991

OFFICE MEMORANDUM

Subject: Form of Undertaking to furnished by Armed Forces personnel applying for Civil Posts under Ex-Servicemen category

The undersigned is directed to refer to the explanation below Rule 2 (c) of the Ex-Servicemen (Re-employment in Central Civil Services and Posts Rules, 1979 and the Notification of Personnel and Training Department No. 36034/5/85-Estt.(SC), dated 27.10.1986, according to which officials, who are working in Armed Forces and would come under Ex-Servicemen category after their retirement are permitted to apply for the re-employment, a year before their completing the prescribed period. The matter of applying uniform procedure for accepting the status of Ex-Servicemen for such employees as are working in Armed Forces Service and applying for civil posts on Re-employment basis, has been under consideration in this Department for some time. It has now been decided that in accordance with the above "clarification", a candidate working in Armed Forces would become eligible for applying civil posts only when he completes the prescribed period of Army Service within a year from the last date for receiving application in connection with Special Recruitment/Examination, etc., prescribed by the Competent Authority.

2. The pro forma of the certificate to be submitted along with the application form is given below. [Vide Appendix- 2]
3. Since the appointment of such a candidate is subject to his submitting documentary evidence that he has been duly released/retired/discharged from the Armed Forces and qualified as an Ex-Serviceman in terms of the rules ibid, such a candidate shall be required to submit along with his application an undertaking duly signed by him in the following format: -
[vide Appendix- 3]
4. Director-General, (Resettlement) is being requested separately to advise the various Rajya/Zilla Sainik Boards regarding furnishing of documentary evidence to eligible ex-servicemen.

APPENDIX-3

FORM OF UNDERTAKING TO BE GIVEN BY CANDIDATES APPLYING FOR CIVIL POSTS UNDER EX-SERVICEMEN CATEGORY

I understand that, if selected on the basis of the recruitment/examination to which this application relates, my appointment will be subject to my producing documentary evidence to the satisfaction of the Appointing Authority that I have been duly released/retired/discharged from the Armed Forces and that I am entitled to the benefits admissible to ex-servicemen in terms of the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979, as amended from time to time.

2. I also understand that I shall not be eligible to be appointed to a vacancy reserved for Ex-servicemen in regard to the recruitment covered by this examination, if I have at any time prior to such appointment, secured any employment on the civil side (including Public Sector Undertaking, Autonomous Bodies/Statutory Bodies, Nationalized Banks, etc.), by availing of the concession of reservation of vacancies admissible to Ex-servicemen.

Place:

Signature of Candidate

Dated:

No. 15012/6/82 - Estt (D)
Government of India
Ministry of Personnel, Public Grievances
and Pensions.
(Department of Personnel & Training)

New Delhi, the 12th February, 1986

NOTIFICATION

G.S.R. In exercise of the powers conferred by the proviso to article 309 of the Constitution, the President hereby makes the following rules further to amend the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979, namely :

- (1) These rules may be called the Ex-servicemen (Re-employment in Central Civil Services and Posts) (Amendment) Rules, 1986.
- (2) They shall come into force on the date of their publication in the Official Gazette.

2. In rule 6 of the Ex-servicemen (Re-employment in Central Civil Services and Posts) Rules, 1979 (herein after referred to as the said rules), after sub-rule (3), the following sub-rules shall be inserted, namely :

"(4) For appointment to any reserved vacancy in Group C posts, a matriculate Ex-serviceman (which term includes an ex-servicemen, who who has obtained the Indian Army Special Certificate of Education of the corresponding certificate in the Navy or the Air Force), who

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has put in not less than 15 years of service in the Armed Forces of the Union may be considered eligible for appointment to the posts for which the essential educational qualification prescribed in graduation and where.

- (a) work experience of technical or professional nature is not essential for
- (b) though non technical professional work experience is prescribed as essential yet the appointing authority is satisfied that the ex-servicemen is expected to perform the duties of the post by undergoing on the job training for a short duration.

(5) For appointment to any reserved vacancy in Group C and Group D posts, where the prescribed minimum educational qualification is matriculation, the appointing authority may, at his discretion, relax the minimum educational qualifications in favour of an ex-serviceman who has passed the Indian Army Class I Examination or equivalent examination in the Navy or the Air Force, and who has put in at least 15 years service in the Armed Forces of the Union and is otherwise considered fit to hold the post, in view of his experience and other qualifications."

3. After rule 6 of the said rules, the following rule shall be inserted namely :

"6 A Lower standard for selection - In the case of direct recruitment, if sufficient number

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of candidates belonging to the ex-servicemen are not available on the basis of general standard to fill all the vacancies reserved for them, candidates belonging to the category of ex-servicemen may be selected under a relaxed standard of selection to make up the deficiency in the reserved quota subject to the condition that such relaxation will not affect the level of performance by such candidates."

No. 36034/11/85 - Estt (SCT)
Government of India/Bharat Sarkar
Ministry of Personnel, Public Grievances
and Pensions
(Department of Personnel & Training)

New Delhi, the 12.9.1986.

OFFICE MEMORANDUM

Subject : Special Recruitment procedure by pooling vacancies reserved for ex-servicemen in large employing Ministries and Public Sector Undertakings; Recommendation No. 15.6 (Para 5.46) of the High Level Committee.

Ministries and Departments are aware that reservation to the extent of 10% and 20% in Group 'C' and 'D' respectively has been provided for ex-servicemen. Vide Department of Personnel & Training Notification No. 39016/10/79 - Estt (c), dated 15.12.1979. In 1984, a High Level Committee under the Chairmanship of Shri K P Singh Deo, the then Raksha Rajya Mantri was constituted by the Ministry of Defence to look into the problems of ex-servicemen. During its deliberations, it came to the notice of the High Level Committee that the vacancies reserved for ex-servicemen are not being properly utilised for various reasons with the result that a large number of ex-servicemen are not getting re-employment in the Civil Services. Keeping this in view, the High Level Committee has made the following recommendation :

"1-506. To settle above 3 lakh ex-servicemen now held on the live roster, it is recommended that special ex-servicemen placement drives be undertaken by Ministries employing large number of people. Railways, Posts and Telegraphs and some public sector Undertakings like Coal India, ONGC, SAIL, BHEL, and others should be able to absorb a large number in the immediate future. All those organisations should pool the vacancy arising in small offices at higher levels, e.g. Zones or Circles and the percentages or reservations of ex-servicemen of these totals should be filled up. The Directorate General Resettlement should be given three months advance information to arrange maximum number of suitable ex-servicemen for bulk recruitment at the appointed places."

2. The Government of India after giving due consideration to the recommendation mentioned above, have accepted the recommendation.

3. For the purpose of implementing the recommendation, it has been decided that the special recruitment drive should be undertaken in major Ministries and Public Undertakings in the first instance, which could be extended to other Ministries and Departments in stages. Therefore, to start with, the procedure mentioned in this Office Memorandum will be applied in the Ministry of Transport, Department of Railways, Ministry of Communications, (Department of Posts and Department of Telecommunications), Ministry of Defence (attached and subordinate office), and Ministry of Finance (Nationalised Banks).

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4. The Ministry of Home Affairs have intimated that the para-military forces already conduct special recruitment drives such as holding of recruitment rallies at different places, and contacting the Rajya Sainik Boards/ Directorate General Resettlement for sponsoring names for filling up the reserved vacancies.

5. The Department of Public Enterprises have brought out the percentage of reservation varied from State to State and the Zone of some Public Sector Undertakings comprises more than a State as a result of which actual calculation for ex-servicemen might pose practical difficulties.

6. The following procedure is laid-down in this connection to be followed by the Ministries and Departments.

- (i) Vacancies existing in Group 'C' and 'D' in various Offices under each Ministry should be pooled at a Central level (either zonal or Divisional or Circle) for determining. The vacancies which can be earmarked for the Ex-servicemen. This will ensure that small number of vacancies in small offices are also taken into consideration. Out of the vacancies so pooled, the share of each beneficiary i.e. the Scheduled Castes, the Scheduled Tribes and the physically handicapped including their carried forward reservation should be identified in accordance with the existing orders and instructions of the government. The gap between the 50% of the total vacancies so pooled in any recruitment year and the percentage of total reserved vacancies, so identified for SC/ST and the

physically handicapped will determine the number of vacancies to be filled by the ex-servicemen.

- (ii) Wherever it is considered necessary the vacancies reserved for ex-servicemen should be segregated from the normal recruitment procedure and a Special Selection Board should be constituted to undertake the process of recruitment through prescribed recruiting agencies. A representative of the DG(R) may also be associated with such Boards or with the normal recruitment procedure relating to ex-servicemen.
- (iii) the reserved vacancies for ex-servicemen should be notified to the DG(R) and the Rajya and Zila Sainik Board and an advance notice preferably 3 months is to be given to these Organisations. The vacancies should also be advertised through the local newspapers which would enable the ex-servicemen to apply direct to the recruiting agency.
- (iv) the schedule of Special recruitment may be drawn up by the concerned Ministries and Departments in consultation with the DG(R) so that such exercise in an organisation does not clash with the recruitment exercise in another organisation.
- (v) In order to make it more convenient for the ex-servicemen to apply for recruitment, a common application form (model enclosed with this O.M.) may be prescribed with minor

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modifications if considered absolutely necessary and the format of the application may be inserted in the advertisement in variably

- (vi) After the candidates are recommended, they have to be allocated to various offices by the Zonal or Circle Headquarters.
- (vii) A report of the Special Recruitment drive undertaken in each recruitment year may be furnished to the Director General (Resettlement), Ministry of Defence annually.

7. It is requested that the procedure prescribed in this O.M. may be followed strictly and any difficulty in implementation sorted out in consultation with the Director General (Resettlement). The procedure prescribed in this O.M. will, however, not be applicable to such of the posts which are filled centrally through recruiting agencies, such as, Staff Selection Commission

APPLICATION FORM FOR GROUP 'C'/'D' POSTS

(RETIRED DEFENCE SERVICE PERSONNEL)

1. Personnel number, Rank
& Name

2. Arm/Service

3. Father's Name :

4. Dates of :

(a) Birth :

(b) Enrolment :

(c) Retirement /Discharge :

5. Reasons for release/discharge

6. Medical Category

7. Award or Decoration

8. Home, District and State

9. Present address/ Mailing address

.....
.....
.....

Please paste
your photograph
passport size in
uniform.

10. Permanent address

.....

.....

11. Present profession/employment

12. Qualification

(Please attach attested copies of mark sheets)

Course	Year	Institution	Civil Equivalent
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(a) Civil (educational)

(b) Military (educational)

(c) Military (Professional)

13. Languages Known Read Write Speak

(a) Indian

(b) Foreign

* 14. Character as assessed by Military authorities

15. Extra Curricular activities

(a) Sports

(b) Literary

(c) Cultural/Art

16. Details of pay/pension/gratuity

- (a) Last basic pay drawn :
- (b) Total emoluments :
- (c) Details of pension/gratuity :

17. Zila Sainik Board/Employment Exchange

(Registration No.)

18. Job applied for :

(.....)

Signature

Name

Date

Address

*Counter signed

*Applicable where applications are not made directly.

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GOVERNMENT OF INDIA
MINISTRY OF PERSONNEL, P.G. AND PENSIONS
DEPARTMENT OF PERSONNEL AND TRAINING
NEW DELHI

No.36034/03/97-Estt.(Res)

Dated 17th March, 1998

OFFICE MEMORANDUM

SUBJECT: RESERVATION FOR EX-SERVICEMEN IN POSTS UNDER THE
CENTRAL GOVERNMENT.

Attention of all Ministries/Departments is invited to instructions issued by D/o Personnel and Training from time to time regarding reservation for ex-servicemen in jobs under the Central Government. It has been brought to the notice of this Department that the existing instructions on reservation of ex-servicemen in Government jobs are not being followed in letter and spirit by the recruiting agencies.

2. All the Ministries/Departments are requested to ensure that the reservation policy of the Government as spelt out in the instructions issued by this Department from time to time is implemented fully by them and the organisations under their control.

(R.K. Tandon)

Joint Secretary to the Govt. of India

To

1. All the Ministries/Departments of the Government of India.
2. Ministry of Finance (Banking Division), New Delhi, for necessary action in regard to Public Sector Banks.
3. Department of Economic Affairs (Insurance Division), New Delhi, for necessary action in regard to Insurance Corporations.
4. Department of Public Enterprises, New Delhi, for necessary action in regard to Public Sector Undertakings.
5. Staff Selection Commission, C.G.O. Complex, New Delhi.
6. Ministry of Defence, New Delhi, with reference to their O.M. No. 2667/DGR/Emp-3, dated 23.1.98.
7. D.R. (Resettlement), R.K. Puram, New Delhi.

[Handwritten signature]

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17/3/98

RECEIVED

PERSONNEL DIV

No. 14/1/74 - Estt. (D)
Government of India
Cabinet Secretariat
Department of Personnel and Administrative
Reforms

New Delhi, the 14th July, 1975

OFFICE MEMORANDUM

Subject : Filling up of direct recruitment vacancies
by Priority and Non-priority candidates in
the ratio of 50:50 : instructions regarding

The undersigned is directed to refer to the Ministry of Home Affairs (now Department of Personnel and Administrative Reforms, Office Memorandum No. 71/300/54 CS(C) dated 28th May, 1955, according to which the Central Government vacancies notified to the Employment Exchanges are to be filled by candidates belonging to the priority categories and those belonging to non-priority categories, in the ratio of 50:50. For this purpose the appointing authorities should maintain a roster starting with a candidate of Priority category and while intimating a vacancy, to the Employment Exchange indicate clearly whether the vacancy should be filled by a priority or by non-priority candidate. In cases where a number of vacancies has to be filled simultaneously by candidate belonging to both the categories, the appointing authority should indicate to the Employment Exchange concerned how many of the vacancies should be filled by candidates of the priority categories and how many by those of non priority category. Since issue of the above instructions in the year 1955, reservations of vacancies for ex-servicemen including disabled ex

servicemen have been made. In accordance with rule 4 of the Ex-servicemen (Reservation of vacancies in the central Civil Services and Posts, Class III and Class IV) Rules, 1971, ten percent of the vacancies in each of the categories of class III posts and of such posts in each class III service and twenty percent of the vacancies in each of the categories of class IV posts and of such posts in each class IV service including permanent vacancies filled initially on a temporary basis and temporary vacancies which are likely to be made permanent and/or are likely to continue for three months and more to be filled by direct recruitment in any year, shall be reserved for being filled by ex-servicemen. It has also been provided that percentage of reservation specified for ex-servicemen in a category of posts shall be increased or decreased in any one recruitment year to the extent to which the total number of vacancies reserved for ex-servicemen, Scheduled Caste and Scheduled Tribes (including the carried forward reservations for SC/ST) and for any other categories taken together falls short of or is in excess, as the case may be, of 50% of the vacancies in that category of post filled in that year.

2 It has been brought to the notice of this Department that, while a number of establishments under the Government of India, particularly those which came into existence after 1955, are not aware of the instructions of 28th May, 1955, referred above, many have found it difficult to allocate vacancies to Priority and non-priority categories against reserved and unreserved vacancies, in accordance with the instructions referred to in para 1 above. There also appears to be some doubt regarding allocation of posts reserved for SC/ST amongst priority and non-priority candidates. It is therefore, clarified that in accordance with the position stated in para 1 above,

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the vacancies reserved for Scheduled Castes and Scheduled Tribes and backlog of reserved vacancies, if any, should also be allocated to Priority and Non-Priority categories in the ratio, of 50:50 while all vacancies reserved for ex-servicemen would go to priority category; and thereafter, the remaining unreserved vacancies should be so allocated among priority and non-priority that the **total number of vacancies in the priority category does not exceed 50% of the total number of vacancies in the year**, (i.e., the overall ratio of priority and non-priority should be 50:50) The above position will be clear from the illustration give below :

(If there are 100 vacancies in Class IV posts in a given year, then out of them approximately 25 vacancies will have to be reserved for SC/ST and 20 vacancies will be reserved for ex-servicemen, 5 vacancies may be utilised for filling up the carried forward vacancies for SC/ST, if needed.) The division between priority and non-priority categories will be as under :

Number of posts (Class IV)		100	
		Priority	Non-Priority
1. Reservation of SCs and STs		12½	12½
2. Backlog or increase or decrease of vacancies in accordance with Rule 4 (i.e., carried forward vacancies for SC & ST in the instant cases		2½	2½
3. Reserved for ex-servicemen		20	-
4. Un-reserved		15	35
Total	50	50	

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3. The upto-date list of categories to whom various priorities have been allowed for the purpose of employment through Employment Exchanges/ DGE & T (Special) Cell, which was circulated vide this Department's O.M. No. 14/21/71 - Estt. (D) , dated 25.12.1971, is also enclosed for ready reference.

4. The Ministry of Finance etc. are requested to bring these orders to the notice of all concerned for information and necessary action.

List of Categories to whom various Priorities have been allowed for the purpose of employment through Employment Exchange/D.G.E. & T. (Special Cell)

- I. Surplus employees (other than Class IV) registered with the Central (Surplus Staff) cell of the Department of Personnel and who do not get redeployed through the Cell within the prescribed period of six months; surplus class IV employees registered with the D.G.E. & T (Special cell); disabled ex-servicemen.
- II. (A) Upto two members each of the family of Defence Services personnel killed in action.
(B) Permanent displaced Government servants from N.W.F.P. Baluchistan and Sind.
- III. (i) Central Government servants retrenched due to normal reduction in establishment, but otherwise than on the recommendations of the Economy Unit as well as the employees of the Rationing and Civil Supplies Department in various States in India who were retrenched on account of abolition of rationing in India ;
(ii) demobilised personnel of the Armed forces.
(iii) Class IV Central Government employees educationally qualified for Class III posts ;
(iv) defence personnel who are transferred to the Reserve and members of the Defence Forces who on retrenchment or retirement join the Territorial Army.
(v) retrenched employees of former Part 'C' States ;

- (vi) ex-T.B. employees and ex-leprosy patients who were discharged from the Central government service but who have subsequently been declared non-infective and medically fit for Government service ;
- (vii) Bonafide displaced Goldsmiths ;
- (viii) physically handicapped persons ;
- (ix) repatriates from Burma and Ceylon who have migrated to India on or after 1.6. 1963 and 1.11. 1964 respectively (overriding priority in Priority III in their home State and Priority III in other States);
- (x) displaced persons from East Pakistan who migrated to India on or after 1.11.1964 (overriding priority in Priority III just below (II) in the Eastern Zone) but before 25.3.1971.
- (xi) Indian Nationals who were employed in government services in East African countries of Kenya, Tanganyika, Uganda and Zanzibar.

No. 39016/5/81 - Estt. (C)
Government of India
Ministry of Home Affairs
Department of Personnel & A.R

New Delhi, dated, the 21.2.81

OFFICE MEMORANDUM

Subject : **Rehabilitation of disabled Defence Services Personnel and members of families of Defence Services personnel killed or severely disabled concessions for appointment to Group 'C' and Group 'D' posts.**

O.M. No. F.14/42/65 Estt. (D) dt. 29.3.66, 13/35/71 Estt. (C) dt. 24.12.71, 13/34/71 Estt(C) dt. 25.12.71, 13/7/72 Estt(C) dt. 9.3.72, 13/14/74 Estt(C) dt. 26.12.74, 39016/9/79 Estt(C) dt. 26.6.79 read with OM of even No. dt. 18.9.79, 39016/12/ 79 Estt(C) dt. 24.11.79, 39016/12/ 79 Estt(C) dt. 22.9.80.	The undersigned is directed to refer to the marginally noted Office Memoranda, in which the details of the priority/concessions/relaxations provided in favour of ex-servicemen disabled during war as well as up to two members each of the families of the defence services personnel killed or severely disabled in action for their absorption in civil posts have been spelt out. 2. The priorities for extension of welfare and resettlement benefits to ex-servicemen have been revised vide this Department's O.M. No.
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~~14024/6/77-Estt. (D) dated 31st~~
December, 1979. It has been provided in the said O.M. that for the purpose of appointment to Group 'C' and Group 'D' posts under the Central Government filled by direct recruitment, the ex-servicemen disabled whether during war or in peace time, but their disability being attributable to military service, shall be accorded PRIORITY-I alongwith the retrenched employees of Government who are already included in that priority. It has also been provided in the said O.M. that up to two members each if the families of defence services personnel killed in service or severely disabled (with over 50% disability and who have become unfit for employment with their disability attributable to military service) whether during war time or peace time would be granted priority immediately after the disabled ex-servicemen i.e. Priority -II A.

3. For the purpose of this concession, the members of the families of such deceased/severely disabled Defence Services personnel would include, besides his widow, his sons/daughters/near relations who agree to support his family.
4. The question of extending the relaxation in age limit,

medical standards and educational qualifications as at present granted to war-time disabled defence services personnel and to the peace time disabled defence services personnel has been considered by the government. It has been decided that these concessions should be made available to peace-time, disabled defence services personnel also.

5. The existing instruction relating to these concessions for absorption of disabled defence services personnel in Group 'C' and Group 'D' posts are consolidated with certain changes wherever necessary in the succeeding paragraphs :

- (i) **Medical standards** : The disabled Defence Services personnel will be examined by a Demobilisation Medical Board of the Defence Services and the certificate of fitness granted by that Board would be considered adequate for the purpose of employment of such personnel in Group 'A' to Group 'D' posts. The Ministry of Defence will in consultation with the Ministry of Home Affairs lay down satisfactory norms of medical standards for guidance of the Defence Services Medical Boards. However, if the physical capacity of a person either deteriorates or improves after demobilisation, the employing authority may require a fresh medical examination by the appropriate Civil Medical Board. In that case also the Medical Board will follow the norms laid if the disabled personnel are found fit for discharging the duties of the post, they will be considered as medically fit.

(ii) Relaxation in age limit

(a) Posts filled on the results of competitive examinations :

The disabled Defence Services personnel will, be eligible for appointment to Group 'C' posts, which are filled on results of competitive examinations conducted by the Staff Selection Commission and other bodies provided they are educationally qualified. For appearing at the examination, they would be allowed a relaxation of the age limit up to three years (eight years in the case of disabled Defence Services personnel belonging to SC/ST) in excess of the prescribed upper age limit, subject to the condition that they would not be allowed to avail of a larger number of chances, in respect of recruitment to a service, or a group of services, than the maximum number of chances permissible to any general candidate under the age limit.

(b) Posts filled through Employment Exchanges.

For appointment to Group 'C' and 'D' posts, which are filled through the Employment Exchange, the disabled Defence Services personnel would be allowed relaxation of the age limit up to 45 years of age (50 years in the case of

disabled Defence Services personnel belonging to the SC/ST), or provided they satisfy the age limit prescribed for a particular post after deducting the period of their service in the Armed Forces from their actual age and adding three years thereto, whichever may be more advantageous to them.

- (iii) The procedure for notifying vacancies in Group 'C' and group 'D' posts indicated in this Department's O.M. No. 13/3/71- Estt (C) dated the 1st February, 1972 for effective rehabilitation of war disabled ex-servicemen and eligible dependants of Defence Services Personnel killed or severely disabled in action in Group 'C' and Group 'D' posts would also be followed in the case of ex-servicemen disabled during peace-time and dependants of the Defence Services personnel killed or severely disabled in peace-time.
- (iv) As regards educational qualifications the disabled Defence Services personnel who are considered for appointment to Group 'C' posts filled through the employment Exchanges, but who do not possess the required educational qualifications, would not be considered ineligible for appointment merely on that account. Their ability to discharge the duties expected of the incumbents of the particular Group 'C' posts should be assessed by the

appointing authority on the basis of suitable tests which should be designed for the purpose by the authority. As regards appointment to Group 'D' posts, the prescribed minimum educational qualification of Middle School standard or a lower standard will be relaxed in case of those disabled Defence Services personnel who have put in 3 years of service before being invalided from the Military service, or whose total service in the Defence Forces and a civil department is not less than 3 years.

- (v) When a disabled Defence Services person is available and is sponsored by the Ex-servicemen Cell of the D.G.E & T. or the Employment Exchanges, he shall not be refused employment, provided he fulfills the minimum requirements of the job. The posts reserved for ex-servicemen/ disabled ex-servicemen and those which are to be utilized for the recruitment of the priority categories should not be filled through any other source without first making a reference to Ex-servicemen Cell of the D.G. Resettlement, Ministry of Defence, and obtaining a non-availability certificate.
- (vi) **Evidence of Age Qualifications :** For purposes of claiming the age concessions referred to in (ii) (a) & (b) above a certificate from the Director General,

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Resettlement, Ministry of Defence will be accepted as documentary evidence in support of the claim of disabled Defence Service personnel.

No. 14034/3/84 - Estt (D)
Government of India
Ministry of Home Affairs
Department of Personnel & A.R

New Delhi, the 31st July, 1984

OFFICE MEMORANDUM

Subject : List of Categories to whom various priorities have been allowed for the purpose of employment through Employment Exchange/D.G.E.T. (special Cell).

The undersigned is directed to refer to this Department's O.M. No. 14/21/71 - Estt (D) dated 25.12.71 enclosing *inter alia* a list of categories of persons to whom various priorities had been allowed till that date, for purposes of employment through employment Exchange/D.G.E.T. (Special Cell). Subsequently, more instructions were issued extending the concessions of priority in appointment of Group 'C' and 'D' posts. With a view to facilitate reference, a revised list of categories of persons to whom various priorities have been extended so far, (incorporating the instructions issued subsequent to 25.12.71), is sent herewith. The number and date of this Department's communication in which instructions relating to a particular priority were issued has also been noted against each entry in the list.

2. Ministry of Finance etc. are requested to bring the revised list to the notice of all appointing authorities under them.

List of Categories to whom various Priorities have been allowed for the purpose of employment through employment Exchange/ D.G.E. & T. (Surplus Cell/Ex-servicemen Cell),

Category

PRIORITY - I	Authority
1. Surplus employees (other than group 'D') registered with the Central (Surplus Staff) Cell of the Department of Personnel & Administrative Reforms, who do not get re-deployed through the Cell within the prescribed period of six months.	No. 14/21/71 - Estt (D) dated 25.12.1971.
2. Surplus Group 'D' employees registered with the Surplus Cell of the Directorate General of Employment and Training.	-do-
3. Disabled ex servicemen disabled during war	-do-
4. Disabled Border Security Force personnel disabled during war	No. F. 13/5/72 - Estt (C) dated 19.2.1973.
5. Disabled ex-servicemen disabled during peace time provided their disability is attributable to military services.	No. 14024/6/77-Estt(D) dated 31.12.1979 and No. 39016/5/81-Estt(C) dated 21.2.1981

PRIORITY - II(A)

Authority

- | | |
|---|--|
| (1) Upto two members each of the family of Defence services personnel killed in action. | No. 14/21/71-Estt(D)
dated 25.12.1971 |
| (2) Upto two members each of the family of defence services personnel who have been disabled in action and are totally unfit for re-employment | No. 13/7/72-Estt(C)
dated 9.3.1972 |
| (3) Upto two members each of the family of Border Security Force personnel killed in action. | No. 13/5/72-Estt(C)
dated 2.2.1972 |
| (4) Upto two members each of the families of defence services personnel killed or severely disabled in 1947-48 Kashmir Operation, war like Operations, Goa and Hyderabad Operation, War like Operations on borders with neighbouring countries including armed hostilities like Nagas and Mizos, after examining each case on the merits in consultation with the D.G.E. & T. | No. 13/14/74-Estt(C)
dated 6.1.1975. |
| (5) Upto two members each of the family of defence services | No. 14024/6/77-Estt(D)
dt. 31.12.1979 and |

PRIORITY - II(A)

Authority

personnel killed in peace time (provided the death of the soldier is attributable to military service).

No. 39016/5/81-Estt(C)
21.2.81.

- (6) Upto two members each of the family of defence services personnel who have been disabled during peace time with over 50 per cent disability and who have become unfit for re-employment (provided the disability of the soldier is attributable to military service).

-do-

PRIORITY. II (B)

- (1) Permanent disabled Government servants from N.W.F.P., Baluchistan and Sind.

No. 14/21/71-Estt(D)
dated 25.12.1971.

PRIORITY. III

- (1) Central Government servants retrenched due to normal reduction in establishment but otherwise than on the recommendations of the Economy Unit as well as the employees of

No. 14/21/71-Estt(D)
dated 25.12.71.

PRIORITY - III

Authority

the Rationing and Civil Supplies Department in various States in India who were retrenched on account of abolition of rationing in India.

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|---|------|
| (2) Demobilised personnel of the Armed Forces | -do- |
| (3) Group 'D' Central Government employees educationally qualified for Group 'C' posts | -do- |
| (4) Defence personnel who were transferred to the reserve and members of the defence forces who on retrenchment or retirement join the Territorial Army. | -do- |
| (5) Retrenched employees for former Part 'C' States | -do- |
| (6) Ex-T.B. employees and Ex-Leprosy patients who were discharged from the Central Government services but who have subsequently been declared non-infective and medically fit for Government Service | -do- |

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PRIORITY - III	Authority
(7) Bonafide displaced gold-smith	No. 14/21/71-Estt(D) dated 25.12.1971
(8) Physically handicapped persons	-do-
9. Repatriates from Burma and Ceylon who have migrated to India on or after 1.6.1963 and 1.11.1964 respectively (overriding priority in Priority-III in their home State and Priority-III in other States)	-do-
10. Displaced persons from East Pakistan (Bangladesh) who migrated to India on or after 1.11.1964 (Overriding priority in Priority-III just below (II) in the Eastern (Zone) but before 25.3.1971.	-do-
11. Indian Nationals who were employed in Government service in East African countries of Kenya, Tanganyika, Uganda and Zanzibar.	-do-

No. 14024/1/88 - Estt (D)
Government of India
Ministry of Personnel, P.G.
Department of Personnel & Training

New Delhi, the 5.1.89

OFFICE MEMORANDUM

Subject Priorities for the purpose of employment
 through employment exchange/DGE &
 T (Ex-Servicemen Cell) - Indication of
 priority number whiles ending
 requisitions to employment exchanges.

The undersigned is directed for to refer to the DPAR's OM No. 14/1/74 - Estt (D) dt. 14.7.75 and O.M. No. 14034/3/84 - Estt (D) dt. 31.7.84 on the above subject and to say that instances have come to the notice of this Department, in which Ministries Departments etc. have not been indicating the number of priority vacancies while sending their requisitions to the employment exchanges. This has resulted in denial of employment assistance to the categories of persons covered under various priorities, particularly disabled Defence service personnel under Priority I and dependents of Defence personnel killed or severely disabled in action under Priority II A. The list of categories to whom priorities have been allowed was circulated with the DPAR's OM No. 14034/3/84 - Estt (D) dt. 31.7.84 referred to above.

2. A copy each of the OM dt. 14.7.75 and 31.7.84 along with the list of categories to whom priorities are allowed

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is enclosed

3. All the Ministries/Departments are requested strictly to adhere to the govt. instructions referred to above and indicate clearly the number of vacancies while sending requisitions to the employment exchanges for sponsoring candidates. It is brought to the notice of all Ministries/Departments that as per the instructions issued in this Deptt. OM. N. 14024/3/81 - Estt (D) dt. 4.12.81, all vacancies in Group C & D posts in the Central govt. Establishments other than those in the Ministry of Defence earmarked to be filled by priority candidates from among the disabled Ex-Servicemen, dependents of the Defence services personnel killed or severely disabled and disabled Ex B.S. F personnel and dependents of B.S.F. personnel killed in action, should be notified to the Ex-Servicemen Cell of the DGE & T and the need for filling the same through the local Employment Exchange should be considered only if the Ex-servicemen cell of the DGE & T is unable to sponsor suitable dependents

(M.V. KESAVAN)

DIRECTOR

Special provision relating to IPKF personnel

1. For rehabilitation of disabled IPKF personnel and appointment to wards of deceased IPKF personnel on compassionate grounds, all Ministries/Departments are required to take action on the following lines :

- (i) Priority for employment to be given to disabled IPKF personnel for employment under government over other normal cases of ex-servicemen against vacancies reserved for ex-servicemen.
- (ii) To offer priority and compassionate appointment to dependents of IPKF personnel killed in Sri Lanka operations in terms of the Department of Personnel O.M. of 30 th June, 1987 with suitable relaxation to the extent possible, especially regarding consideration of terminal benefits.
- (iii) Efforts to be made to absorb them zonally or in the vacancies in the States of domicile, where employment is sought.

2. Ministry of Defence, who are compiling the lists of Personnel requiring employment assistance, will circulate the list to all the Ministries/ Departments for dissemination to the recruiting offices under their control. As soon as the lists are received, prompt action should be taken by the concerned authorities to identify suitable vacancies so as to absorb them, preferably in the State of domicile or in the zone where employment is sought.

(O.M. No. 14034/2/89 Estt (D) dt. 7/2/1989)

No. 14024/3/95-Estt.(D)
Government of India
Ministry of Personnel, P. G and Pensions
(Department of Personnel & Training)

New Delhi 110001
June 4, 1997

OFFICE MEMORANDUM

Subject: GRANT OF PRIORITY TO RECRUITS/OFFICER
CADETS WHO ARE MEDICALLY BOARDED OUT

The undersigned is directed to say that the committee on problems of ex-servicemen had recommended that recruits/officer cadets who are boarded out on medical grounds attributable to their military training should be accorded Priority I for the purpose of Employment.

2. The above recommendations have been examined in consultation with the Ministry of Labour (DGET), and it has been decided to accept the same. Consequently, the list of categories to whom priorities have been allowed circulated vide this Department's O.M. No. 14034/3/84-Estt.(D) dated 31.7.1984 stands modified to the extent that under Priority I, recruits/officer cadets who are boarded out on medical ground attributable to their military training will now be included and shown at S.No.6.

3. Ministry of Finance etc. are requested to bring the above decision to the notice of all concerned for necessary action.

Sd/-
(K K JHA)
Director

To
All Ministries/Departments of Govt. of India

Copy to:-

1. The Comptroller and Auditor General of India.
2. Rajya Sabha Secretariat/Lok Sabha Secretariat.
3. All Union Territory Administration.
4. National Commission for SC/ST.
5. All attached/subordinate officers under the Department of Personnel and Training.
6. Ministry of Labour (DGET) Shram Shakti Bhawan, New Delhi with reference to their D.O. No. DGET-U-11011/9/95-EEL(pt) dated 2.5.1997.
7. Ministry of Defence, Deptt. of Defence, South Block, New Delhi - 110 011 - with reference to DO No. 08/US/D(Res)/94 dated 11th November 1994.

No.36035/8/92 -Estt.(SCT)
Government of India
Department of Personnel and Training

Dated 10.11.1994

OFFICE MEMORANDUM

Subject:-Liaison Officers for reservation matters relating to physically handicapped/Ex-servicemen/OBCs.

The undersigned is directed to say that representations have been received from Association of physically handicapped persons that the reservation benefits in direct recruitment and in promotion are not being properly extended to them by various offices of the Government of India, Public Sector Undertaking, etc. They have represented that Liaison Officers should be appointed to oversee the implementation of the reservation orders for physically handicapped as is being done in the case of reservation for Scheduled Castes/Scheduled Tribes. Similar demands are also received for the appointment of Liaison Officer to oversee the implementation of the reservation orders for Other Backward Classes and Ex-servicemen. The matter has accordingly been considered and it is felt that it would be both practical and desirable to have a single Liaison Officers for overseeing the implementation of the reservation orders. It has, therefore, been decided that the Liaison Officers appointed to look after the reservation matter of SC/ST would also be Liaison Officers for reservation matter relating to physically handicapped and Ex-servicemen.

2. Ministry of Finance, etc., may please bring these instructions to the notice of all the Attached/Subordinate/Public Sector undertaking under them for compliance.

No. 36034/6/82 - Estt. (SCT)
Government of India/Bharat Sarkar
Ministry of Home Affairs/Grih Mantralya
Department of Personnel
and Administrative Reforms
(Karmik Aur Pra-shasnik Sudhar Vibhag)

New Delhi, the 22 June, 1982

OFFICE MEMORANDUM

Subject : Reservation of vacancies for Ex-servicemen in Group 'C' and 'D' posts under the Central Government half-yearly return.

The undersigned is directed to refer to this Deptt. O.M. No. 39016/4/80 - Estt (C) dated 16th May, 1980 on the subject stated above and to say that it was envisaged that Ministry/Depts. and Public Sector Undertakings may submit quarterly returns showing the total number of vacancies in each of the categories of Group 'C' & 'D' posts and number filled by Ex-servicemen in the Ministries/Depts. etc. to the Liaison Officers D.G.E.T and the Director General (Resettlement), Ministry of Defence. Since the quarterly returns were not being received regularly after consideration of the matter recently in the Liaison Officers' Conference, it has been decided that the quarterly returns may be changed to half yearly returns. To collect information on the subject, two proformas have been approved - One for the Central Govt./Dep'tt. and the other for Public Sector Undertakings. Copies of these proformas are attached

2. Ministry of Finance and Bureau of Public Enterprises etc are requested to issue necessary instructions to their attached and sub-ordinate offices under their administrative control impressing on them to submit the half-yearly returns ending 30th June, and 31st December each year showing the position by 15th of the month following the half year. As hitherto, these returns may be sent to the Liaison Officer, Directorate General, Employment & Training (Ministry of Labour) and Director General (Resettlement), Ministry of Defence.

Priority in Appointment

It would be appreciated that early rehabilitation of disabled personnel/dependants of those killed in action in civil employment is a national responsibility. The employing departments are therefore to comply strictly with the regulations laid in OM 14/1/74- Estt(D) dated 14.7.75 and 14024/1/88 - Estt (D) dated 5.1.89.

Priority for the purpose of appointment to Group 'C' and 'D' posts under the Central Govt. filled by direct recruitment, has been provided for ex-servicemen disabled either during the war or in peace time but their disability being attributable to military service. Such persons will be accorded priority along with retrenched employees of the Government.

Demobilised personnel of Armed Forces, Defence Personnel who are transferred to the Reserve List and members of Defence Forces who on retrenchment or retirement join the territorial army and members (upto 2) of each of the family of service personnel killed in action are given priority in filling up direct recruitment vacancies through Employment Exchanges/DGE & T (Special Cell) along with certain other categories of persons.

All C & D posts when reported to the Surplus Cell are to be simultaneously notified to the Ex-servicemen Cell of the DGE & T to enable cell to nominate disabled ex-servicemen/dependants of those killed against priority vacancies which cannot be filled by nominations of the Surplus Cell. In case of the Defence Ministry and its subordinate offices, the simultaneous notification of vacancies is to be made to the DGR and not the ex-servicemen cell of DGE & T.

Similarly whilst sending requisitions to the Employment Exchanges, the employing departments are to clearly state whether the vacancies are priority or non priority.

OM. No. 14/1/74 - Estt (D) dated 14.7.1975

OM. No. 39016/5/81 Estt (C) dated 21.2.81

OM No 14034/3/84 Estt (D) dated 31.7.84

EXEMPTION OF FEES

No. 39018/1/79 - Estt. (SCT)
Government of India/Bharat Sarkar
Ministry of Home Affairs/Grih Mantralaya
Department of Personnel and
Administrative Reforms
(Karmik Aur Prashasnik Sudhar Vibhag)

New Delhi: 110001, 20th September, 1979

OFFICE MEMORANDUM

Subject: Rehabilitation of ex-servicemen released from the Armed Forces. Exemption from payment of examination and application fee beyond 30th June, 1979.

The undersigned is directed to refer to this Department's Office Memorandum No. 13/31/71 - Estt. (C) dated 17th May, 1970 under which the ex-servicemen were granted exemption from payment of examination and application fees for recruitment to Class III and Class II (non-gazetted) posts advertised by the Union Public Service Commission (U.P.S.C.) & M. whether filled by examination or by selection up to 30th June, 1979, the date up to which reservations for them were in force. The Government of India has already taken a decision to extend the validity of ex-servicemen reservation rules beyond 30th June, 1979 on a permanent basis and necessary notification in this regard is likely to be issued shortly. It has also been decided in consultation with the Ministry of Finance, that the concession envisaged in this

Department of Law, Government of India, New Delhi, India, referred to above, for a copy of the report of the Commission of Enquiry.

2. The Ministry of Education, Government of India, New Delhi, India, referred to above, for a copy of the report of the Commission of Enquiry.

3. Hindi version will follow.

No. 36034/6/82 - Estt. (SCT)
Government of India/Bharat Sarka:
Ministry of Home Affairs/Grih Mantralya
Department of Personnel
and Administrative Reforms
(Karmik Aur Pra-shasnik Sudhar Vibhag)

New Delhi, the 22 June, 1982

OFFICE MEMORANDUM

Subject : Reservation of vacancies for Ex-servicemen in Group 'C' and 'D' posts under the Central Government half-yearly return.

The undersigned is directed to refer to this Deptt. O.M. No. 39016/4/80 - Estt (C) dated 16th May, 1980 on the subject stated above and to say that it was envisaged that Ministry/Deptts. and Public Sector Undertakings may submit quarterly returns showing the total number of vacancies in each of the categories of Group 'C' & 'D' posts and number filled by Ex-servicemen in the Ministries/Deptts. etc. to the Liaison Officers D.G.E.T and the Director General (Resettlement), Ministry of Defence. Since the quarterly returns were not being received regularly after consideration of the matter recently in the Liaison Officers' Conference, it has been decided that the quarterly returns may be changed to half-yearly returns. To collect information on the subject, two proformas have been approved - One for the Central Govt./Deptt. and the other for Public Sector Undertakings. Copies of these proformas are attached.

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2. Ministry of Finance and Bureau of Public Enterprises etc. are requested to issue necessary instructions to their attached and sub-ordinate offices under their administrative control impressing on them to submit the half-yearly returns ending 30th June, and 31st December each year showing the position by 15th of the month following the half-year. As hitherto, these returns may be sent to the Liaison Officer, Directorate General, Employment & Training (Ministry of Labour) and Director General (Resettlement), Ministry of Defence.